

Sri T N Chandrashekargowda vs The Bangalore Water Supply on 1 June, 2026

Author: Suraj Govindaraj

Bench: Suraj Govindaraj

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NC: 2026:KHC:25886
WP No. 8296 of 2015
C/W WP No. 7754 of 2018

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HC-KAR

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 1ST DAY OF JUNE, 2026

BEFORE

THE HON'BLE MR. JUSTICE SURAJ GOVINDARAJ
WRIT PETITION NO. 8296 OF 2015 (GM-BWSSB)
C/W
WRIT PETITION NO. 7754 OF 2018 (GM-BWSSB)

IN WP NO.8296/2015
BETWEEN

SRI T N CHANDRASHEKARGOWDA
AGED ABOUT 41 YEARS
S/O LATE NARAYANAGOWDA
R/AT THANISANDRA VILLAGE,
K R PURAM HOBLI-560 027,
BANGALORE EAST TALUK

...PETITIONER

(BY SRI. SAMPATH A., ADVOCATE)

AND

Digitally signed
by SHWETHA
RAGHAVENDRA

1. THE BANGALORE WATER SUPPLY
AND SEWERAGE BOARD

Location: HIGH

COURT OF
KARNATAKA

BY ITS COMMISSIONER,
KAVERI BHAVAN,
BANGALORE-560 001.

2. THE ASSISTANT EXECUTIVE ENGINEER
DEPARTMENT OF BWSSB
HBR LAYOUT SUB DIVISION,
BBMP, BANGALORE-560 001.

.... RESPONDENTS

(BY SRI. K.B. MONESH KUMAR., ADVOCATE FOR R1 & R2)

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WP No. 8296 of 2015

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THIS WRIT PETITION IS FILED UNDER ARTICLE 226 OF THE
CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OR ORDER OR
DIRECTION DIRECTING THE RESPONDENTS TO REMOVE THE
SEWAGE PIPES LAID IN THE LAND OF THE PETITIONER BEARING
SY.NO.81/3 OF HENNUR VILLAGE KASABA HOBLI, BANGALORE
NORTH TALUK MEASURING 1 ACRE 11 GUNTAS AND ETC.

IN WP NO.7754/2018
BETWEEN

1. MRS JETHRONICA
AGED ABOUT 80 YEARS
W/O LATE MR GABRIEL
2. MR JOSEPH
AGED ABOUT 46 YEARS
S/O LATE MR GABRIEL

BOTH ARE RESIDING AT
NO.89, M M REDDY ROAD,
MARIYANNAPALYA H.A. FARM POST,
BANGALORE 560024

...PETITIONERS

(BY SRI. PUNEETH K., ADVOCATE)

AND

1. STATE OF KARNATAKA
BY ITS PRINCIPAL SECRETARY
DEPARTMENT OF LAW AND PARLIAMENTARY AFFAIRS

VIKASA SOUDHA
BANGALORE 560001

2. BANGALORE WATER SUPPLY AND SEWERAGE BOARD
BY ITS CHAIRMAN
JAL BHAVAN
BANGALORE 560001

.... RESPONDENTS

(BY SRI. M. SRINIVAS KUMAR., HCGP FOR R1;
SRI. K.B. MONESH KUMAR., ADVOCATE FOR R2)

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THIS WRIT PETITION IS FILED UNDER ARTICLE 226 OF THE
CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OR ORDER
DECLARING S-77 OF THE BWSSB ACT AS UNCONSTITUTIONAL TO
THE EXTENT OF ENABLING THE RESPONDENTS TO LAY SEWER LINES
IN PRIVATE LAND WITHOUT ACQUIRING THE LAND AND WITHOUT
PAYING COMPENSATION AND ETC.

THESE WRIT PETITIONS COMING ON FOR ORDERS AND
HAVING BEEN RESERVED FOR ORDERS ON 19.02.2026, THIS DAY,
THE COURT PRONOUNCED THE FOLLOWING:

CORAM: HON'BLE MR. JUSTICE SURAJ GOVINDARAJ

CAV ORDER

1. WP No.8296 of 2015, the Petitioner is before this
Court seeking the following reliefs:
 - i) Issue a writ or order or direction directing the
respondents to remove the sewage pipes laid in the land of
the Petitioner bearing sy.no.81/3 of Hennur Village, Kasaba
Hobli, Bangalore North taluk measuring 1 acre 11 guntas.
 - ii) Issue a writ or order or direction directing the
respondents to first survey and demarcate the land of the
Petitioner and thereafter install the sewage pipes.
 - iii) Issue a writ or order or direction directing the
respondents to compensate the petitioners for allowing the
soil erosion in an extent of 13 guntas in the land of the
Petitioner.

iv) Issue a writ or order directing the respondents to erect a retaining wall enclosing the drain on the eastern side of the property of the Petitioner so as to avoid soil erosion due to the open drainage.

v) Issue a writ or order or direction directing the respondent no.1 to compensate the Petitioner in a sum of Rs. 10,00,000/- being the expenses towards restoring the lands to its original status and to remove all the pipes and other equipments laid by the respondents in the property of the Petitioner.

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vi) Pass such other order or further orders as this Hon'ble Court deems fit in the facts and circumstances of the case and so as to meet the ends of justice and equity.

2. WP No.7754 of 2018, the petitioners are before this Court seeking the following reliefs:
 - a) Issue a writ or order declaring S-77 of the BWSSB Act as unconstitutional to the extent of enabling the respondents to lay sewer lines in private land without acquiring the land and without paying compensation.
 - b) Issue a writ or order or direction directing to pay the compensation to the petitioners in accordance with the Right to Fair Compensation, Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.
 - c) Pass such other order or orders as this Hon'ble Court deems fit to pass in the facts and circumstances of the case and to meet the ends of justice.

3. Facts in WP No.8296/2015:

- 3.1. The Petitioner claims to be the absolute owner in possession of land bearing Survey No.81/3 situated at Hennur Village, Kasaba Hobli, Bengaluru North Taluk, measuring 1 acre 11

guntas. Conversion of the said land for non-agricultural purposes was granted under the Official Memorandum dated 11.02.2003. The Petitioner has produced the RTC extracts pertaining to the said survey number along with

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Mutation Entry No.M.R.6/2003-04 in support of title and possession.

3.2. It is the specific case of the Petitioner that on the eastern side of the schedule property, there exists an open drain admittedly belonging to the Government. According to the Petitioner, the said drain has no retaining wall and, on account of continuous erosion over a period of time, a portion of the Petitioner's land measuring approximately 13 guntas has been washed away and merged with the adjoining drain area.

3.3. The grievance of the Petitioner is that respondent No.1 - Bangalore Water Supply and Sewerage Board sought to lay sewage pipelines of about 8 feet in diameter through the aforesaid eroded portion by treating the same as part of the drain belonging to the BWSSB. The Petitioner objected to the said action, contending that the land continued to form part of the Petitioner's property and that no pipeline could be laid therein without acquisition or due process of law.

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3.4. It is further averred that consequent upon such objection, respondent No.2 - Assistant Executive Engineer of the BWSSB lodged a

complaint before the jurisdictional police alleging obstruction of the work and dumping of soil in land belonging to the BWSSB. Aggrieved by the action of the respondents in attempting to lay the sewage pipeline in the Petitioner's land without acquisition or authority of law, the Petitioner has approached this Court seeking the reliefs prayed for.

4. Facts in W.P. No.7754/2018:

- 4.1. The petitioners claim to be the registered owners and khatedars of land bearing Survey No.59/3 situated at Nagavara Village, Bengaluru East Taluk, measuring 1 acre 30 guntas, which is stated to be abutting a nala on its northern side. According to the petitioners, the said land was sought to be acquired by the Government of Karnataka under Section 19 of the Bangalore Development Authority Act, 1976, for the formation of the Arkavathi Layout pursuant to the Final Notification dated 23.02.2004, which subsequently came to be modified by notification dated 18.06.2014. It is

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stated that petitioner No.1 had questioned both the original acquisition notification as well as the modification notification in W.P. No.8277/2015, wherein an order directing maintenance of the status quo has been granted by this Court.

- 4.2. The petitioners further contend that respondent No.2 - Bangalore Water Supply and Sewerage Board, without initiating proceedings in accordance with the provisions of the BWSSB Act, unlawfully entered upon the schedule property and laid pipelines measuring about 5 feet in diameter without obtaining the consent of the petitioners. It is also alleged that the respondent authorities brought construction materials to erect chambers of approximately 5 feet in dimension within the property.

- 4.3. According to the petitioners, when they

questioned the action of the respondents, they were informed that the pipelines were intended for carrying treated water from the Nagenahalli Sewage Treatment Plant to Rampur near Malur, and that the BWSSB was empowered to enter upon any land and lay pipelines therein without

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obtaining consent of the landowner and without payment of compensation. The respondents are stated to have traced such authority to Sections 76 and 77 of the BWSSB Act. Aggrieved by the aforesaid exercise of power and the alleged unauthorised interference with the scheduled property, the petitioners have approached this Court seeking the reliefs prayed for.

5. The submission of Sri.A.Sampath, learned counsel for the Petitioner in both the matters, is that,

- 5.1. The respondents - Bangalore Water Supply and Sewerage Board, without conducting any survey and without acquiring the lands of the petitioners in a manner known to law, have either attempted to lay or have in fact laid sewerage pipelines through the respective properties of the petitioners. According to the petitioners, such action would result in dispossession and substantial interference with their proprietary rights without adherence to due process of law and in the absence of acquisition proceedings, thereby offending Article 300A of the Constitution of India.

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- 5.2. It is further contended that the powers available to the officers of the BWSSB under

the provisions of the BWSSB Act are confined to entering upon private property only for the purpose of carrying out temporary works and, upon completion of such works, the authorities are required to remove all equipment, pipes, drainage structures and restore the land. Therefore, the attempt made by the respondents in W.P. No.8296/2015 to lay drainage pipelines and the action already undertaken in W.P. No.7754/2018 in laying such pipelines are stated to be wholly contrary to law. According to the petitioners, by such unilateral acts, the respondents have unlawfully interfered with the petitioners' constitutional and proprietary rights over the schedule properties.

- 5.3. Learned counsel for the petitioners further submits that though the BWSSB may possess an absolute right to lay sewers under, along or across lands belonging to the State or its instrumentalities, no such unrestricted authority is available in respect of privately owned lands. It is contended that insofar as

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private properties are concerned, the respondents are required to acquire the land or obtain lawful rights in a manner recognised by law before undertaking any permanent work such as laying underground sewerage pipelines.

- 5.4. He refers to Section 127-A of the BWSSB Act, which is reproduced hereunder for easy reference:

127A. Acquisition of land.- (1) Subject to the provisions of this Act and with the previous approval of the State Government, the Board may enter into an agreement with the owner of any land or any interest therein situated within or outside the Bangalore Metropolitan area on such terms and at such price as may be approved to purchase and hold such immovable property or any interest therein for the purpose

of this Act.

(2) The State Government having powers of acquisition under Land Acquisition Act, 1894 or any other Act for the time being in force may, at the request of the Board procure the acquisition of any immovable property and such acquisition shall be deemed to be for public purpose.

(3) For the purpose of sub-section (2) of section 50 of the Land Acquisition Act, 1894, the Authority shall be deemed to be the Local Authority concerned.

(4) After the land vests with the State Government under section 16 of the Land Acquisition Act, 1894, the Deputy Commissioner shall upon payment of the cost of acquisition and upon the Board agreeing to pay any further costs which may be incurred on account of acquisition transfer the land to the Board and the land shall there upon vest with the Board.

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5.5. Learned counsel for the petitioners further places reliance on Section 127A of the BWSSB Act relating to acquisition of land by the Board. By referring to the said provision, it is contended that whenever the Bangalore Water Supply and Sewerage Board requires any private land for the purposes of the Act, the same can be secured either by entering into an agreement with the land owner with the prior approval of the State Government or by resorting to acquisition proceedings through the State Government under the provisions of the Land Acquisition Act. The provision further contemplates vesting of the acquired land in the Board upon payment of acquisition costs.

5.6. Placing emphasis on Section 127A of the BWSSB Act, learned counsel submits that whenever private land is sought to be utilised by the BWSSB for laying pipelines or for any

other permanent infrastructure, compensation in accordance with the provisions of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 is required to be paid. It is contended that failure to exercise the power of eminent

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domain in the manner known to law and the omission to pay compensation would render the action of the respondents arbitrary, unconstitutional and violative of the petitioners' right to property guaranteed under Article 300A of the Constitution of India.

- 5.7. He refers to Section 39 of the BWSSB Act, which is reproduced hereunder for ease reference:

39. Power to lay mains.--(1) Notwithstanding anything contained in the Karnataka Municipal Corporations Act, 1976] 1 or any other law for the time being in force, the Board may lay a main whether within or without the local limits of the Bangalore Metropolitan Area,--

(a) in any street or any land vested in the Government, the Bruhat Bangalore Mahanagara Palike or any other local authority or any Corporation owned or controlled by the Government;

(b) with the consent of every owner and occupier of any land not forming part of a street, in, over or on that land, and may, from time to time, inspect, repair, alter or renew or may at any time remove any main so laid whether by virtue of this section or otherwise:

Provided that where a consent required for the purpose of this sub-section is withheld, the Board may, after giving the owner or occupier of the land a written notice of its intention so to do, lay the main in, over or on that land even without such consent.

(2) Where the Board, in exercise of the powers under this section, lays a main in, over or on any land not forming part of a street or land referred to in clause (a) of sub-section (1), or

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inspect, repair, alter, renew or remove a main so laid down in, over or on any such land, it shall pay compensation to every person interested in that land for any damage done to, or injurious affection of that land by reason of the inspection, laying, repair, alteration, renewal or removal of the main.

5.8. Learned counsel for the petitioners also places reliance on Section 39 of the BWSSB Act relating to the power of the Board to lay mains. By referring to the said provision, it is contended that though the Bangalore Water Supply and Sewerage Board is empowered to lay mains in streets and lands vested in the Government, local authorities or Government-controlled corporations, insofar as private lands are concerned, the statute itself recognises the rights of landowners and provides for payment of compensation for any damage caused or injurious affection occasioned to such land.

5.9. Learned counsel submits that Section 39 specifically contemplates payment of compensation to the owner or interested person whenever water mains are laid in, over or upon private land not forming part of a street. It is therefore contended that there cannot be any distinction between laying of water pipelines and sewerage pipelines so as to

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deny compensation in the latter case. According to him, if compensation is statutorily payable in respect of laying of water mains, the same principle must equally apply to sewerage lines, particularly when the laying of such pipelines results in permanent restriction on the use and enjoyment of private property.

- 5.10. It is further submitted that the expression "damage" occurring in Section 39(2) is required to receive a broad and purposive interpretation. Learned counsel contends that once underground water or sewerage pipelines are laid beneath private land, the owner is substantially deprived of full beneficial enjoyment and unrestricted use of the property, thereby causing continuing injury and diminution in utility of the land. Such deprivation, according to him, amounts to "damage" or "injurious affection" within the meaning of the provision and consequently necessitates acquisition of the land or payment of appropriate compensation in accordance with law.

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- 5.11. Learned counsel additionally submits that apart from the actual extent occupied by the pipelines, further adjoining land is required to be kept free for purposes of inspection, maintenance, repair and access to the pipelines. As a result, the landowner is effectively deprived of the use and enjoyment even of the surrounding area, thereby causing further encroachment upon proprietary rights for which due compensation is liable to be paid.
- 5.12. Referring once again to Section 127A of the BWSSB Act, learned counsel for the petitioners submits that the said provision specifically provides a mechanism for acquisition of land required for the purposes of the Act. According to him, the very incorporation of Section 127A in the statute clearly indicates the legislative

intent that whenever private land is required for implementation of any scheme or infrastructure work under the Act, including the laying of water mains or sewerage pipelines, such land is required to be acquired in accordance with law.

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5.13. It is therefore contended that the respondents cannot bypass the statutory mechanism contemplated under Section 127A and proceed to utilise private property without acquisition, consent or payment of compensation. Learned counsel submits that any contrary interpretation would render the protection afforded to private property rights under Article 300A of the Constitution illusory and would permit the deprivation of property without authority of law.

5.14. He refers to Sections 76 and 77 of the BWSSB Act, which are reproduced hereunder for easy reference:

76. Buildings and private streets not to be erected or constructed over sewers without permission.-- (1) No private street shall be constructed and no building, wall, fence or other structure shall be erected on any Board sewer constructed or maintained by, or vested in the Board. Even where a structure is built near a sewer there shall be a minimum clearance of 1.0 meter or half the diameter of the sewer (whichever is greater) from the edge of the sewer or manhole on the sewer.

(2) If any private street be constructed or any building, wall, fence or structure erected in contravention of the above, the Board may remove or otherwise deal with the same as it thinks fit.]

(3) The expenses incurred by the Board in so doing shall be paid by the owner of the private street or of the building, fence, wall or other

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structure or, as the case may be, by the person offending and shall be recoverable as an arrear of charges payable under this Act.

77. Rights of user of property for sewers.--

(1) The Board may place and maintain sewers over, under, along or across any immovable property whether within or without the local limits of the Bangalore Metropolitan Area, without acquiring the same, and may at any time for the purpose of examining, repairing, altering or removing any sewers enter on any property over, under, along or across which the sewers have been laid:

Provided that the Board shall not acquire any right other than a right of user in the property over, under, along or across which any sewer is laid.

(2) In the exercise of the powers conferred upon it by this section, the Board shall cause as little damage as may be possible, and shall make full compensation for any damage caused by it.

5.15. Learned counsel for the petitioners further places reliance on Sections 76 and 77 of the BWSSB Act relating to restrictions on construction over sewers and the right of user of property for laying sewers. Referring to the said provisions, it is contended that though Section 77 enables the Bangalore Water Supply and Sewerage Board to place and maintain sewers over, under, along or across immovable property without acquisition of the land, the said provision cannot be read in isolation and is

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required to be construed harmoniously with Section 127A of the Act.

- 5.16. Learned counsel submits that Sections 76 and 77 must necessarily be read conjointly with Section 127A, which specifically provides for acquisition of land required for the purposes of the Act. According to him, the provisions of Sections 76 and 77 cannot be interpreted as conferring an unrestricted authority upon the BWSSB to permanently utilise private property for laying water or sewerage pipelines without acquisition or payment of compensation.
- 5.17. It is his submission that if Section 77 is interpreted to mean that the BWSSB may, without acquisition, permanently lay sewer lines beneath private property and continue to exercise rights of access, maintenance and control over such land, the same would result in arbitrary discrimination and would fall foul of Article 14 of the Constitution of India. Learned counsel contends that such an interpretation would also amount to deprivation of property without authority of law and thereby violate Article 300A of the Constitution.

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- 5.18. According to him, the respondents cannot rely upon Section 77 to circumvent the statutory mechanism contemplated under Section 127A for acquisition of land. He therefore submits that Section 77 must either be read down as conferring only a limited and temporary right of user, subject to acquisition and payment of compensation where permanent deprivation occurs, or otherwise any broader interpretation of the provision would render it constitutionally vulnerable.
- 5.19. He refers to Section 63 of the BWSSB Act, which is reproduced hereunder for easy

reference:

63. Vesting of sewers, etc., in Board.--(1)
On and from the date of coming into force of this Chapter, all public sewers, all sewers in, alongside or under any public street within the Bangalore Metropolitan Area, and all sewage disposal works whether constructed out of the municipal fund of the Bruhat Bangalore Mahanagara Palike of the Bruhat Bangalore Mahanagara or otherwise, and all works, materials and things appertaining thereto, shall vest in the Board.

(2) All public and other sewers which are vested in the Board are hereafter in this Act referred to as Board sewers.

(3) For the purposes of enlarging, deepening or otherwise repairing or maintaining any such sewer or sewage disposal work so much of the sub-soil appertaining thereto as may be

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necessary for the said purpose shall be deemed also to vest in the Board.

(4) All sewers and ventilation-shafts, pipes and all appliances and fittings connected with the sewerage works constructed, erected or set up out of the municipal fund of the Bruhat Bangalore Mahanagara Palike in or upon premises not belonging to the Bruhat Bangalore Mahanagara Palike whether,--

(a) before or after the commencement of this Act, and

(b) for the use of the owner or occupier of such premises or not, shall, unless the Bruhat Bangalore Mahanagara Palike has otherwise determined, or does at any time otherwise determine, vest in the Board.

5.20. Learned counsel for the petitioners also places reliance on Section 63 of the BWSSB Act

relating to vesting of sewers and sewage disposal works in the Bangalore Water Supply and Sewerage Board. Referring to the said provision, it is contended that all public sewers, sewage disposal works and all works, materials and things appertaining thereto vest in the Board. Sub-section (3) further provides that so much of the sub-soil as may be necessary for purposes of enlarging, deepening, repairing or maintaining such sewerage works shall also be deemed to vest in the Board.

- 5.21. Placing reliance on the Section 63, learned counsel submits that once sewer lines are laid

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beneath private property, the sewerage infrastructure together with the necessary sub-soil and incidental rights effectively vest in the Board. According to him, the consequence of such vesting is that the landowner is substantially divested of full proprietary control and beneficial enjoyment over the affected portion of land.

- 5.22. It is therefore contended that if the respondents seek to create permanent sewerage infrastructure beneath private property, coupled with continuing rights of access, maintenance and control, such action necessarily requires acquisition of the land or creation of lawful rights in accordance with Section 127A of the BWSSB Act and the applicable land acquisition laws. Learned counsel submits that the respondents cannot, under the guise of exercising a mere "right of user" under Section 77, permanently appropriate private property while simultaneously asserting vesting rights under Section 63.

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- 5.23. Referring to Section 76 of the BWSSB Act, learned counsel submits that wherever a sewer line is laid, the statute mandates maintenance of a minimum clearance of one metre or half the diameter of the sewer, whichever is greater, from the edge of the sewer or manhole, within which no construction can be put up. According to him, the restriction is therefore not confined merely to the exact extent of land beneath which the sewer pipeline passes, but also extends to the adjoining buffer area which is required to be kept permanently free from construction activity.
- 5.24. It is contended that the effect of such statutory restrictions is that the petitioners are effectively deprived of full use and enjoyment not only of the land directly occupied by the sewer line, but also of the surrounding area over which developmental and construction activities stand prohibited. Learned counsel submits that such deprivation substantially curtails the proprietary and developmental rights of the landowners and, in practical terms, results in permanent appropriation of the affected portions of land. According to him, once such restrictions are

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imposed and continuing rights of maintenance, access and control are exercised by the Bangalore Water Supply and Sewerage Board, the affected area together with the adjoining clearance area contemplated under Section 76 effectively stands vested with the Board in terms of Section 63 of the BWSSB Act, thereby necessitating acquisition and payment of compensation in accordance with law.

- 5.25. Drawing a comparison with Section 16 of the Indian Telegraph Act, 1885 and Section 10 of

the Petroleum and Minerals Pipelines (Acquisition of Right of User in Land) Act, 1962, learned counsel submits that in cases involving laying of telegraph lines, electricity transmission lines or petroleum and gas pipelines, the statutes expressly contemplate assessment and payment of compensation to the landowner for the right of user acquired over private property. However, according to him, insofar as laying of sewer lines by the BWSSB is concerned, the respondents seek to exercise similar rights over private property without any acquisition proceedings or

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structured mechanism for assessment and payment of compensation.

5.26. It is therefore contended that such differential treatment lacks any rational basis and results in arbitrary and discriminatory classification, thereby offending Articles 14 and 300A of the Constitution of India. In support of the said submission, learned counsel places reliance on the decision of the Division Bench of this Court in He refers to the decision of the Division Bench of this court in Sri.D.Suresh Kumar and another -v- Karnataka Power Transmission Corporation Limited¹, more particularly para 12 thereof, which is reproduced hereunder for easy reference:

12. In the present case, the corporation has drawn transmission lines and have erected a tower in an area measuring 30ft x 40ft in the land of the land losers/petitioners. On account of the overhead lines, the land losers/petitioners are deprived of undertaking any industrial activity below the overhead lines and therefore to that extent, they are deprived of the usage and utility of the land. This deprivation shall continue so long as the overhead lines exist over the property of the land losers/petitioners. Having regard to the judgment of the Apex court in the case of Kerala State Electricity board (Supra) it cannot be gainsaid that there is dimension of the value of the property over which the overhead lines are

drawn. In the instant case, the property of the land losers/petitioners lie adjacent to the NH-4 since a portion of the land is acquired by the National Highway Authorities

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WA No.373/2012 c/w WA No.550/2012 DD. 16.03.2021

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for the purpose of widening the Highway. Thus, the property in question has a high potential and having regard to the fact that the overhead line passes through the middle of the land of the land losers/petitioners and having regard to the fact that the National Highway Authority has determined the market value at Rs.75/- per sq.ft., it is appropriate in the present case too, having regard to the peculiar facts and circumstances of the case, the market value is determined at a sum of Rs.75/- per sq.ft. Since the area covered by the overhead lines is around 24 guntas of land and having regard to the fact that the land losers/petitioners are deprived of the usage of this area forever, they are entitled to compensation at the rate of Rs.75/- per sq.ft. Since the tower is constructed within 24 guntas of land, the question of granting any compensation towards the area occupied by the tower would not arise. Thus the land losers/petitioners are entitled to a sum of Rs.19,60,200/- as compensation towards the deprivation of the use of 24 guntas of land belonging to them. The land losers/petitioners are entitled to interest at rate of 12% p.a. from the date of drawing the overhead lines till the date of payment.

5.27. By Relying on Sri.D.Suresh Kumar's case¹, learned counsel submits that whenever statutory authorities substantially interfere with proprietary rights by creation of permanent infrastructure or restrictive user rights over private land, compensation commensurate with such deprivation is constitutionally required to be paid.

5.28. On the basis of the aforesaid submissions, learned counsel contends that the actions of

the respondents in entering upon the
petitioners' lands and laying sewerage pipelines

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without acquisition, consent or payment of
compensation are wholly illegal and
unconstitutional. He therefore submits that the
reliefs sought for in the present writ petitions
are liable to be granted.

6. Shri. K.B.Monesh Kumar, learned counsel appearing
for the respondents would submit that,

6.1. Learned counsel for the respondents contends
that both the writ petitions are wholly
misconceived, not maintainable in law and are
liable to be dismissed in limine. Referring to
Section 26 of the BWSSB Act, he submits that
all works connected with the supply of water
and sewerage infrastructure vest with the
Bangalore Water Supply and Sewerage Board.

6.2. He refers to Section 39 of the BWSSB Act,
which is reproduced hereunder for easy
reference:

39. Power to lay mains.

(1) Notwithstanding anything contained in
the City of Bangalore Municipal

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Corporation Act, 1949, or any other law
for the time being in force, the Board
may lay a main whether within or

without the local limits of the Bangalore Metropolitan Area, -

(a) in any street or any land vested in the Government, the Corporation or any other local authority or any corporation owned or controlled by the Government;

(b) with the consent of every owner and occupier of any land not forming part of a street, in, over or on that land,

and may, from time to time, inspect, repair, alter or renew or may at any time remove any main so laid whether by virtue of this section or otherwise:

Provided that where a consent required for the purpose of this sub-section is withheld, the Board may, after giving the owner or occupier of the land a written notice of its intention so to do, lay the main in, over or on that land even without such consent.

(2) Where the Board, in exercise of the powers under this section, lays a main in, over or on any land not forming part of a street or land referred to in clause (a) of sub-section (1), or inspect, repair, alter, renew or remove a main so laid down in, over or on any such land, it shall pay compensation to every person interested in that land for any damage done to, or injurious affection of that land by reason of the inspection, laying, repair, alteration, renewal or removal of the main.

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6.3. By referring to the said provision, learned counsel submits that Section 39 begins with a

non-obstante clause and expressly empowers the Board to lay mains within or outside the Bangalore Metropolitan Area, including over private lands. He submits that under Section 39(1)(b), the Board is authorised to lay mains in, over or on private land and, even in cases where consent is withheld by the owner or occupier, the proviso empowers the Board, after issuance of written notice, to proceed with laying of the main notwithstanding such refusal of consent.

- 6.4. Elaborating further on Section 39, learned counsel submits that the statutory scheme itself recognises and authorises the exercise of such power by the Board and simultaneously provides a complete mechanism for payment of compensation. Referring to Section 39(2), he contends that where the Board lays a main in, over or on private land or undertakes inspection, repair, alteration, renewal or removal thereof, the Board is only required to compensate the landowner or interested person

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for "damage done" or "injurious affection" caused to the land on account of such activity.

- 6.5. It is therefore his submission that the statute does not contemplate acquisition of the land itself merely because pipelines are laid beneath or across private property. According to him, the right conferred upon the Board is only a statutory right of user and not one of acquisition or transfer of ownership. Hence, the only compensation payable is compensation for actual damage or injurious affection caused to the land and not compensation equivalent to compulsory acquisition of the property.
- 6.6. Learned counsel submits that so long as compensation for any actual damage suffered is paid in accordance with Section 39(2), the action of the respondents cannot be termed illegal or unconstitutional

- 6.7. Learned counsel for the respondents also places reliance on Section 63 of the BWSSB Act to contend that all sewerage works, sewers, pipelines, materials and things appertaining thereto vest in the Bangalore Water Supply and Sewerage Board by operation of statute.

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According to him, once sewerage infrastructure is laid by the BWSSB in exercise of powers conferred under the Act, the same statutorily vests with the Board together with all incidental rights necessary for operation, maintenance and repair.

- 6.8. It is therefore contended that the petitioners cannot assert any proprietary claim over the sewerage infrastructure or interfere with the exercise of statutory powers by the BWSSB in respect thereof. Learned counsel submits that such vesting is not the result of acquisition of ownership of the land itself, but only a statutory consequence attaching to the sewerage works executed by the Board, and therefore the petitioners cannot seek to restrain the respondents from exercising powers expressly conferred under the BWSSB Act.

- 6.9. He refers to Section 64 of the BWSSB Act, which is reproduced hereunder for easy reference:

64. Control of sewers and sewage disposal works.--(1) All Government sewers, all sewage disposal works and all works, materials and things appertaining thereto shall be under the control of the Board.

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(2) The Board shall maintain and keep in repair all Board sewers and sewage disposal works and shall construct as many new drains and sewage disposal works as may from time to time be necessary for effectual sewerage and sewage disposal of the Bangalore Metropolitan Area.

6.10. Learned counsel for the respondents further places reliance on Section 64 of the BWSSB Act relating to control of sewers and sewage disposal works. Referring to the said provision, he submits that all Government sewers, sewage disposal works and all works, materials and things appertaining thereto are placed under the control of the Bangalore Water Supply and Sewerage Board. He further submits that the statute casts a mandatory obligation upon the Board to maintain, repair and expand sewerage infrastructure and to construct new drains and sewage disposal works as may be necessary for effective sewerage and sewage disposal within the Bangalore Metropolitan Area.

6.11. Placing reliance on Section 64, learned counsel submits that the control and management of sewerage infrastructure vest statutorily with the BWSSB and such vesting is integral to discharge of the public functions entrusted to the Board under the Act. According to him,

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once sewerage works are laid and brought under the control of the Board in exercise of statutory powers, the petitioners cannot assert any competing claim so as to obstruct or restrain the functioning of the Board.

6.12. He submits that the vesting contemplated under Section 64 is statutory in nature and operates independent of any private claim over the land across which the sewer lines pass. Therefore, according to him, the petitioners

cannot challenge the authority of the Board to lay, maintain and control sewerage infrastructure in exercise of powers expressly conferred under the BWSSB Act.

- 6.13. He refers to Section 92 of the BWSSB Act, which is reproduced hereunder for easy reference:

92. Power to enter land adjoining land in relation to any work.--(1) The Chief Engineer, the Water Supply Engineer, the Sanitary Engineer or any officer authorised in this behalf by the Board or empowered in this behalf by or under any provision of this Act, may enter on any land within fifty metres of any work authorised by or under this Act with or without assistants and workmen for the purpose of depositing thereon any soil, gravel, stone or other materials or for obtaining access to such work or for any other purposes connected with the execution of the same.

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(2) The person so authorised shall, before entering on any such land, state the purpose thereof, and shall, if so required by the owner or occupier thereof, fence off so much of the land as may be required for such purpose.

(3) The person so authorised shall, in exercising any power conferred by this section, do as little damage as may be, and compensation shall be payable by the Board in accordance with regulations made in this behalf to the owner or occupier of such land or to both for any such damage, whether permanent or temporary.

- 6.14. Learned counsel for the respondents further places reliance on Section 92 of the BWSSB Act relating to the power of entry upon lands adjoining works undertaken by the Board. Referring to the said provision, he submits that the statute expressly authorises the Chief Engineer, Water Supply Engineer, Sanitary Engineer or any officer duly authorised by the

Bangalore Water Supply and Sewerage Board to enter upon any land situated within a radius of fifty metres from any work authorised under the Act. Such entry, according to him, may be undertaken with or without assistants, labourers or workmen for purposes connected with execution of the work, including depositing soil, gravel, stones or construction materials, securing access to the work site and carrying out all ancillary activities connected with

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execution, inspection, maintenance and completion of the project.

6.15. Learned counsel submits that Section 92 is indicative of the broad statutory powers consciously conferred upon the BWSSB by the legislature in recognition of the practical necessities involved in establishment and maintenance of water supply and sewerage infrastructure in a metropolitan city. He submits that sewerage systems, trunk pipelines, disposal lines and treatment infrastructure necessarily traverse vast stretches of public and private lands and, therefore, the legislature has deliberately conferred extensive rights of access and user upon the Board to ensure effective implementation of public utility projects without undue obstruction.

6.16. He further submits that Section 92 itself incorporates safeguards protecting private landowners inasmuch as the authorised officer is required, prior to entering upon the land, to disclose the purpose of entry and, if demanded by the owner or occupier, to fence off the required area. Sub-section (3) of Section 92

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additionally mandates that the authorities shall cause as little damage as possible while exercising such powers and further provides for payment of compensation for any permanent or temporary damage caused to the landowner or occupier. According to him, the legislative intent is therefore clear that the statute does not contemplate acquisition of ownership rights in every case where statutory works are undertaken on or beneath private property, but instead provides for a regulated statutory right of entry and user coupled with compensation for damage actually caused.

- 6.17. Elaborating further, learned counsel submits that the powers conferred under Sections 39, 76, 77 and 92 of the BWSSB Act are required to be construed harmoniously and purposively keeping in view the object and scheme of the enactment. According to him, the primary object of the BWSSB Act is to enable planned development, operation and maintenance of integrated water supply and sewerage systems for the Bangalore Metropolitan Area, which constitutes an essential public utility and an

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indispensable component of urban governance, sanitation and public health.

- 6.18. He submits that the interpretation canvassed by the petitioners would render the statutory scheme wholly unworkable and impracticable. If the contention of the petitioners were to be accepted, the Board would be compelled to initiate compulsory acquisition proceedings each time a sewer line, water main, trunk pipeline or ancillary infrastructure is required to pass beneath or across private property. Such a requirement, according to him, would make execution of city-wide sewerage and water supply projects financially prohibitive,

administratively unmanageable and practically impossible, thereby paralysing the discharge of statutory obligations entrusted to the BWSSB.

- 6.19. Learned counsel submits that Sections 76 and 77 expressly recognise the authority of the BWSSB to lay and maintain sewer lines over, under, along or across immovable property without acquisition of ownership rights. The proviso to Section 77 specifically clarifies that the Board shall not acquire any right other than

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a "right of user" in the property through which the sewer line passes. According to him, the legislature has consciously distinguished between acquisition of ownership and conferment of a limited statutory right of user. Therefore, the attempt of the petitioners to equate laying of sewer lines with compulsory acquisition of land is contrary to the express language employed by the statute itself.

- 6.20. He submits that the contention of the petitioners that permanent works necessarily require acquisition while temporary works alone can be executed without acquisition finds no support either in the text of the statute or in the overall legislative scheme. According to him, no such distinction is drawn anywhere under Sections 39, 76, 77 or 92 of the BWSSB Act. The statute merely recognises the Board's authority to execute works and simultaneously obligates it to minimise damage and compensate landowners for actual injury or injurious affection caused to the land.

- 6.21. Learned counsel further submits that the expression "compensation" occurring under

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Sections 39 and 92 cannot be artificially expanded to mean market-value compensation payable upon acquisition of ownership rights. According to him, the compensation contemplated under the Act is compensatory in nature for actual physical damage, temporary disturbance, loss of crops, diminished utility or injurious affection suffered by the landowner and not compensation for transfer of title, since title itself continues to remain with the landowner. He submits that the petitioners continue to retain ownership over the lands in question and only a limited statutory right of user is exercised by the Board for public purposes.

- 6.22. He further contends that the reliance placed by the petitioners upon Article 300A of the Constitution is misplaced. According to him, deprivation of property within the meaning of Article 300A would arise only where ownership or possessory rights are taken away without authority of law. In the present case, the BWSSB is acting strictly in exercise of statutory powers expressly conferred by the BWSSB Act, which itself constitutes "authority of law" within

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the meaning of Article 300A. The statutory scheme having provided both the source of power and the mechanism for compensation, the action of the respondents cannot be characterised as unconstitutional.

- 6.23. Learned counsel also disputes the contention regarding violation of Article 14 of the Constitution. According to him, the comparison sought to be made by the petitioners with the provisions of the Indian Telegraph Act, 1885 and the Petroleum and Minerals Pipelines (Acquisition of Right of User in Land) Act, 1962

is misconceived inasmuch as those enactments operate in entirely different statutory contexts and deal with different classes of infrastructure and rights. Merely because other enactments provide distinct mechanisms for determination of compensation would not render the provisions of the BWSSB Act discriminatory or unconstitutional.

- 6.24. He submits that the powers conferred upon the BWSSB are intended to secure larger public interest by ensuring uninterrupted supply of potable water and effective sewerage

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management to the residents of Bengaluru. Sewerage and sanitation infrastructure directly impact public health, environmental protection and urban administration. Therefore, the provisions of the BWSSB Act must receive a practical and purposive interpretation that advances the object of the legislation rather than frustrates it.

- 6.25. Learned counsel therefore submits that the actions undertaken by the respondents are fully traceable to statutory authority under the BWSSB Act, that no acquisition proceedings are required for exercise of a mere right of user contemplated under Sections 39 and 77, and that the petitioners are, at best, entitled only to compensation for actual damage or injurious affection, if any, caused to their lands in accordance with the provisions of the Act. Consequently, he submits that the writ petitions being devoid of merit are liable to be dismissed.

- 6.26. Learned counsel for the respondents further submits that the provisions of the BWSSB Act are enacted in furtherance of public interest and constitute a beneficial piece of legislation

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intended to secure effective water supply and sewerage management for the residents of the Bangalore Metropolitan Area. According to him, the powers conferred upon the Bangalore Water Supply and Sewerage Board under the Act are designed to facilitate creation and maintenance of essential civic infrastructure and therefore the same are required to receive a liberal and purposive construction.

- 6.27. He submits that an individual landowner cannot seek to frustrate or obstruct implementation of public utility projects undertaken in larger public interest merely on the ground that pipelines or sewerage infrastructure pass beneath or across private property, particularly when the statute itself authorises exercise of such powers and provides for compensation in cases of actual damage or injurious affection. According to him, public interest and individual inconvenience are required to be balanced, and in matters concerning essential urban infrastructure, the larger public interest must prevail.

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- 6.28. Learned counsel further submits that while executing such projects, the officers and engineers of the Board take all necessary precautions to ensure that minimal disturbance and damage are caused to the affected properties. He submits that the Board adopts technical safeguards and engineering measures so as to minimise interference with the rights of landowners and to ensure that the land continues to remain usable to the maximum extent possible even after laying of pipelines.

- 6.29. According to him, the statutory provisions

themselves obligate the Board to cause as little damage as possible and to compensate affected persons wherever damage is caused. Therefore, it cannot be contended that the actions of the respondents are arbitrary, high-handed or violative of constitutional rights. He submits that the exercise of statutory powers by the BWSSB is guided by public necessity, technical requirements and statutory safeguards and hence does not warrant interference in exercise of writ jurisdiction.

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6.30. He relies upon the daily order dated 20.12.2018 in M. Babanna vs. State of Karnataka², more particularly para 8 and 10 thereof, which are reproduced hereunder for easy reference:

8. The provisions of Section 77 authorise the BWSSB to enter any private land for laying, repairing or re-laying the sewage lines beneath the private property of the citizens even without any acquisition. However, for the damage caused during the accomplishment of said task to the private property of the citizen, the Section provides for payment of compensation. The payment of compensation is not and cannot be a sine qua non for undertaking the task in question. The compensation in the text and context of this Section is nothing but the damages for the loss caused to the owner of the property and not for the apprehended loss. An argument to the contrary would militate against the content and intent of the said provision. No ruling is cited to support an otherwise construction of this provision or any perimateria provision.

10. The BWSSB is a statutory public body. The civic life of the city depends upon the functions of this body. That is the reason why peculiar and special provisions like Section 77 are made in the Act. The difficulty of the BWSSB in the

absence of such a provision is easily understandable. The public interest in which the BWSSB functions has to have primacy over the private interest of the persons. It is not that the legal injury the citizen suffers by the operation of the agencies of the BWSSB is without remedy. The Section itself mentions the right and remedy for its violation. Presently the work of the BWSSB which is half way through is at halt because of obstruction by the Petitioner,

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presumably on the basis of the interim order granted in his favour.

6.31. By relying on M.Babanna, he submits that this Court has already interpreted Section 77 of the BWSSB Act and recognised the authority of the Bangalore Water Supply and Sewerage Board to enter upon private lands for the purpose of laying, repairing or re-laying sewerage lines even without resorting to acquisition proceedings.

6.32. Learned counsel submits that the aforesaid decision clearly holds that the compensation contemplated under Section 77 is only compensation for actual damage caused during execution of the work and not compensation for acquisition of land or for any speculative or apprehended loss alleged by the landowner. According to him, the Court has specifically observed that payment of compensation is not a condition precedent for undertaking sewerage works and that any interpretation requiring acquisition of land before laying sewer lines would defeat the very object and purpose of the statutory provision.

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- 6.33. Learned counsel submits that this Court in M. Babanna has recognised the BWSSB as a statutory public utility body discharging essential civic functions upon which the life of the city depends. This Court has also observed that provisions such as Section 77 have been consciously incorporated by the legislature to enable effective execution of public infrastructure projects and that larger public interest must prevail over purely private interests.
- 6.34. Learned counsel submits that the controversy involved in the present petitions is no longer res integra. According to him, the decision in M. Babanna clearly affirms the authority of the BWSSB to lay sewerage lines through private property in exercise of statutory powers under Section 77 without undertaking acquisition proceedings, subject only to payment of compensation for actual damage or injurious affection caused during execution of the work.
- 6.35. He submits that the principles laid down in M. Babanna squarely apply to the facts of the present case and completely answer the

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challenge raised by the petitioners under Articles 14 and 300A of the Constitution. According to him, the petitioners cannot insist upon compulsory acquisition merely because sewerage pipelines pass beneath their lands, nor can they obstruct execution of public utility works undertaken by the BWSSB in larger public interest. He therefore submits that the writ petitions are liable to be dismissed in terms

of the law laid down in the aforesaid decision.

- 6.36. He submits that the aforesaid judgement when taken on appeal the Hon'ble division Bench dealt with in vide Judgment dated 10.01.2019 in M.Babanna vs. State of Karnataka³, more particularly unnumbered para at page No.6 thereof, which is reproduced hereunder for easy reference:

These intra-court appeals are directed against the order dated 12.12.2018 passed by the learned Single Judge in W.P.Nos.57994-57995/2017, whereby the interlocutory application filed by the fourth respondent herein seeking permission to complete the work of the sewage lines in the Petitioner's property came to be allowed.

The Petitioner, being the owner of the property bearing Sy.No.4 measuring 3 acres 36 guntas and Sy.No.17/8 situated at Roopena Agrahara Village, now part of the BBMP area, Bengaluru,

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has challenged the notification dated 20.11.2017 (Annexure-A) published in the Gazette on 07.12.2017 (Annexure-A-1) by the third respondent, whereunder the land to the extent of 3,257 sq. mtrs. and 311.71 sq. mtrs. respectively in the abovesaid survey numbers was sought to be acquired under Section 11(1) of Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 ('the Act') for the purposes of widening of the road and laying sewage pipes by invoking emergency clause under Section 40(1) of the Act. An interim order came to be passed on 21.12.2017 by the learned Single Judge that the Petitioner should not be dispossessed from the subject property. However, the respondent Nos.1 to 3 were permitted to continue with the acquisition

proceedings.

The fourth respondent filed an application under Section 151 of CPC seeking permission of the writ Court to enter upon the subject property to lay new sewage lines by pressing into service Section 77 of Bangalore Water Supply And Sewage Board Act, 1964 ('BWSSB Act') and while contending, inter alia, that the Petitioner though having given consent for laying underground pipelines, was obstructing and not allowing the fourth respondent to complete the work of laying sewage pipes.

The said application came to be resisted by the Petitioner by filing detailed statement of objections and the learned Single Judge, after considering the rival contentions, by order dated 12.12.2018, has allowed the application filed by fourth respondent for the reasons that the Petitioner has given his consent; and that Section 77 of the BWSSB Act empowers the fourth respondent to enter any private land for laying, repairing or re-laying the sewage lines beneath the private property of the citizen even without any acquisition. Hence, these intra-court appeals have been filed by Petitioner challenging the order dated 12.12.2018.

We have heard Shri D.N.Nanjunda Reddy, learned Senior Counsel appearing on behalf of Shri Chidanandayya for the appellant and Shri

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Adithya Sondhi, learned Senior Counsel appearing on behalf of Shri B.L.Sanjeev for the caveator/respondent No.4.

It is the contention of Shri D.N.Nanjunda Reddy, learned Senior Counsel appearing for the appellant-petitioner that when the respondents have issued notification for acquisition of the land, without taking recourse under the said Act by taking possession of the property; and without passing award or depositing the compensation for acquisition of

the subject property; and without even putting the fourth respondent on terms, the learned Single Judge ought not to have permitted the fourth respondent to lay the sewage lines.

Per contra, Shri Adithya Sondhi, learned Senior Counsel appearing for the caveator/respondent No.4 would submit that though the interim order passed in the writ petition by the learned Single Judge on 21.12.2017 prohibited the respondents from dispossessing the Petitioner, but that had not been of prohibiting the authorities from laying the sewage lines and as such, in the interest of public and also taking into consideration the consent given by the appellant, the said work was undertaken, which was sought to be obstructed by the appellant. It is submitted that by way of abundant caution, the application in question seeking permission of the writ Court was filed, which has been granted in the light of Section 77 of the BWSSB Act and there is no infirmity in the said order calling for interference. Hence, he prays for dismissal of the appeals.

Having heard learned counsel for the parties, we notice that under the order impugned, the fourth respondent has been permitted to lay the sewage lines in the subject property i.e., beneath the property of the appellant, while taking note of the fact that Section 77 of the BWSSB Act enables and empowers the authority to enter upon any private land for laying, repairing, altering or re-laying the sewage lines beneath the private property of the citizens, even without taking recourse to any acquisition proceedings; and in the event of any damage being caused during such task

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being undertaken, it only enables such citizen of seeking damages from the authority. However, payment of damages by way of compensation is not sine qua non for undertaking such task. In that view of the matter, we find no infirmity in the impugned order calling for interference.

6.37. By relying on the Division Bench Judgement in M.Babanna³, he submits that the Hon'ble Division Bench, affirmed the view taken by the learned Single Judge. Referring to the observations made by the Hon'ble Division Bench, learned counsel submits that the appellate Court, after considering the scope and effect of Section 77 of the BWSSB Act, categorically held that the provision empowers the Bangalore Water Supply and Sewerage Board to enter upon private property for laying, repairing, altering or re-laying sewerage pipelines beneath private lands even without initiating acquisition proceedings.

6.38. Learned counsel submits that the Hon'ble Division Bench specifically noticed that though acquisition proceedings had independently been initiated under the provisions of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 for road widening and sewerage

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purposes, the authority of the BWSSB to lay sewerage lines under Section 77 stood on an independent statutory footing and did not depend upon completion of acquisition proceedings.

6.39. He submits that the Hon'ble Division Bench accepted the contention advanced on behalf of the BWSSB that the interim order restraining dispossession did not prohibit laying of underground sewerage lines and that Section 77 conferred an independent statutory right enabling the Board to execute such works in public interest. Learned counsel points out that the Hon'ble Division Bench expressly observed that Section 77 enables the authority to lay sewerage lines beneath private property "even without taking recourse to any acquisition proceedings" and that compensation for damages is not a sine qua non for undertaking

- 6.40. Learned counsel further submits that the Hon'ble Division Bench also took note of the fact that the right preserved to the landowner under Section 77 is essentially a right to seek

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damages or compensation for any injury caused during execution of the work and not a right to prevent execution of the project itself. According to him, the Hon'ble Division Bench has therefore authoritatively interpreted Section 77 as creating a statutory right of user in favour of the BWSSB distinct from acquisition of ownership rights over the land.

- 6.41. Relying upon the aforesaid judgment of the Hon'ble Division Bench in M.Babanna, learned counsel submits that the controversy involved in the present writ petitions is squarely covered against the petitioners. According to him, the Hon'ble Division Bench has unequivocally upheld the authority of the BWSSB to enter upon private lands and lay sewerage pipelines without resorting to acquisition proceedings and has further held that the landowner's remedy is confined only to seeking compensation for actual damage caused during execution of the work.

- 6.42. He submits that the interpretation sought to be placed by the petitioners upon Sections 39, 76, 77 and 127A of the BWSSB Act stands directly

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contrary to the law declared in the aforesaid

judgment. According to him, once the Hon'ble Division Bench has recognised the validity and enforceability of the statutory right of user created under Section 77, the petitioners cannot contend that acquisition proceedings are mandatory whenever sewer lines are laid beneath private property.

6.43. Learned counsel therefore submits that the challenge mounted by the petitioners under Articles 14 and 300A of the Constitution is wholly misconceived and contrary to binding precedent. He submits that the statutory powers exercised by the BWSSB are in furtherance of public interest and are protected by the express provisions of the BWSSB Act as interpreted by this Court. Consequently, he prays that the writ petitions be dismissed.

6.44. He relies on the order dated 14.12.2016 of the Hon'ble Supreme Court in The Power Grid Corporation of India Limited -v- Century Textiles & Industries Limited and others⁴, more particularly paragraphs 14, 19, 20, 21

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and 28 thereof, which are reproduced hereunder for easy reference:

14) It is also of significance that the Division Bench has not differed with the aforesaid factual position, including the fact that the project in question is in public interest and, therefore, allowed the completion of the project. Notwithstanding these findings of the High Court, both by the Single Judge as well as the Division Bench, argument of the writ petitioner is that the erection of two towers on the mining area leased out to the writ petitioner is going to render a large chunk of mining area unusable. It is not only going to affect the

supply of limestone to the writ petitioner for the manufacture of cement, thereby causing financial loss to the writ petitioner, even the State Government would be suffering financially in the form of royalty. It is, thus, argued that such a loss is also of public nature not only in financial terms, but in making the valuable mineral available for production of cement, which is an essential commodity. On this basis, it is argued that realignment of the two towers is a better option, which would sub-serve both the competing public interests, one projected by the writ petitioner and the other by the Power Grid, as cost of realignment of the overhead lines was barely 4.50 crores as against the loss to the State Exchequer in the sum of 120 crores and to the writ petitioner in the neighbourhood of 690 crores and, therefore, action of the Power Grid is arbitrary, unjust and unfair as well. It is further submitted that there is violation of Sections 68 and 69 of the Electricity Act, 2003 as well as Rules 3 and 10 of the Works of Licensees Rules, 2006 (hereinafter referred to as 'Rules, 2006') in laying down the overhead lines and, therefore, the High Court erred in law in permitting the same.

18) Another submission made was that permission of the writ petitioner was not obtained which was needed as per Rule 3 of the Rules, 2006. Rule 3(a) reads as under:

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"3. Licensee to carry out works. - (1) A licensee may -

(a) carry out works, lay down or place any electric supply line or other works in, through, or against, any building, or on, over or under any land whereon, whereover or whereunder any electric supply-line or works has not already been lawfully laid down or placed by such licensee, with the prior consent of the owner or occupier of any building or land."

19) In the instant case, the aforesaid Rule is not applicable in view of Section 164 of the Electricity Act, 2003, which reads as under:

"164. Exercise of powers of Telegraph Authority in certain cases.-The Appropriate Government may, by order in writing, for the placing of electric lines or electrical plant for the transmission of electricity or for the purpose of telephonic or telegraphic communications necessary for the proper co-ordination of works, confer upon any public officer, licensee or any other person engaged in the business of supplying electricity under this Act, subject to such conditions and restrictions, if any, as the Appropriate Government may think fit to impose and to the provisions of the Indian Telegraph Act, 1885 (13 of 1885), any of the powers which the telegraph authority possesses under that Act with respect to the placing of telegraph lines and posts for the purposes of a telegraph established or maintained, by the Government or to be so established or maintained."

20) It is not in dispute that in exercise of powers under the aforesaid provision, the Appropriate Government has conferred the powers of Telegraph Authority vide notification dated December 24, 2003 exercisable under Indian Telegraph Act, 1885 upon the Power Grid. It may also be mentioned that a Central Transmission Utility (CTU) is a deemed licensee under the second proviso to Section 14 of the Electricity Act, 2003. Power Grid is a Central Transmission Utility and is, therefore, a deemed licensee under the Electricity Act, 2003. This coupled with the fact that Power Grid is treated

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as Authority under the Indian Telegraph Act, 1885, it acquires all such powers which are vested in a Telegraph Authority under the provisions of the Indian Telegraph Act, 1885 including power to eliminate any obstruction in the laying down of power transmission lines. As

per the provisions of the Indian Telegraph Act, 1885, unobstructed access to lay down telegraph and/or electricity transmission lines is an imperative in the larger public interest.

Electrification of villages all over the country and availability of telegraph lines are the most essential requirements for growth and development of any country, economy and the well-being/progress of the citizens. The legislature has not permitted any kind of impediment/ obstruction in achieving this objective and through the scheme of the Indian Telegraph Act, 1885 empowering the licensee to lay telegraph lines, applied the same, as it is, for laying down the electricity transmission lines. Powers of the Telegraph Authority conferred by Sections 10, 15 and 16 of the Indian Telegraph Act, 1885, stand vested in and are enjoyed by the Power Grid. These provisions are reproduced below:

"10. Power for telegraph authority to place and maintain telegraph lines and posts.-- The telegraph authority may, from time to time, place and maintain a telegraph line under, over, along, or across, and posts in or upon, any immovable property:

Provided that--

(a) the telegraph authority shall not exercise the powers conferred by this section except for the purposes of a telegraph established or maintained by the Central Government, or to be so established or maintained;

(b) the Central Government shall not acquire any right other than that of user only in the property under, over, along, across, in or upon which the telegraph authority places any telegraph line or post; and

(c) except as hereinafter provided, the telegraph authority shall not exercise those

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powers in respect of any property vested in or under the control or management of any local authority, without the permission of that authority; and

(d) in the exercise of the powers conferred by this section, the telegraph authority shall do as little damage as possible, and, when it has exercised those powers in respect of any property other than that referred to in clause

(c), shall pay full compensation to all persons interested for any damage sustained by them by reason of the exercise of those powers." xx xx "15. Disputes between telegraph authority and local authority.-- (1) If any dispute arises between the telegraph authority and a local authority in consequence of the local authority refusing the permission referred to in section 10, clause

(c), or prescribing any condition under section 12, or in consequence of the telegraph authority omitting to comply with a requisition made under section 13, or otherwise in respect of the exercise of the powers conferred by this Act, it shall be determined by such officer as the 1[Central Government] may appoint either generally or specially in this behalf.

(2) An appeal from the determination of the officer so appointed shall lie to the Central Government; and the order of the Central Government shall be final." "16. Exercise of powers conferred by section 10, and disputes as to compensation, in case of property other than that of a local authority.-- (1) If the exercise of the powers mentioned in section 10 in respect of property referred to in clause (d) of that section is resisted or obstructed, the District Magistrate may, in his discretion, order that the telegraph authority shall be permitted to exercise them.

(2) If, after the making of an order under subsection (1), any person resists the exercise of those powers, or, having control over the property, does not give all facilities for their being exercised, he shall be deemed to have

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committed an offence under section 188 of the Indian Penal Code, 1860 (45 of 1860).

(3) If any dispute arises concerning the sufficiency of the compensation to be paid under section 10, clause (d), it shall, on application for that purpose by either of the disputing parties to the District Judge within whose jurisdiction the property is situate, be determined by him. (4) If any dispute arises as to the persons entitled to receive compensation, or as to the proportions in which the persons interested are entitled to share in it, the telegraph authority may pay into the court of the District Judge such amount as he deems sufficient or, where all the disputing parties have in writing admitted the amount tendered to be sufficient or the amount has been determined under sub-section (3), that amount; and the District Judge, after giving notice to the parties and hearing such of them as desire to be heard, shall determine the persons entitled to receive the compensation or, as the case may be, the proportions in which the persons interested are entitled to share in it.

(5) Every determination of a dispute by a District Judge under sub-section (3), or sub-section (4) shall be final:

Provided that nothing in this sub-section shall affect the right of any person to recover by suit the whole or any part of any compensation paid by the telegraph authority, from the person who has received the same..."

21) Section 10 of the Indian Telegraph Act, 1885 empowers the Telegraph Authority to place and maintain a telegraph line under, over, along or across and posts in or upon any immovable property. The provision of Section 10(b) of the Indian Telegraph Act, 1885 makes it abundantly clear that while acquiring the power to lay down telegraph lines, the Central Government does not acquire any right other than that of user in the property. Further, Section 10(d) of the Indian Telegraph Act, 1885

obliges the Telegraph Authority to ensure that it causes as little damage as possible and that the Telegraph Authority shall also be obliged to pay

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full compensation to all person interested for any damage sustained by them by reason of the exercise of those powers.

28) CIVIL APPEAL NO. 8342 OF 2009

The appellant in this case also raised the issue of taking prior consent from it, as the owner of the land, before laying electricity transmission lines. This argument has been rejected by us while dealing with the appeal of Century Textiles & Industries Limited. Accordingly, this appeal is also dismissed.

6.45. By referring to Century Textiles case, he submits that the Hon'ble Supreme Court, while dealing with the powers of the Power Grid Corporation under the provisions of the Electricity Act, 2003 read with the Indian Telegraph Act, 1885, has recognised the principle that statutory authorities engaged in execution of essential public utility infrastructure may exercise a statutory "right of user" over private property without acquisition of ownership rights in the land.

6.46. Learned counsel submits that the Hon'ble Supreme Court, in the aforesaid judgment, has categorically held that where statutory powers akin to those conferred under Sections 10 and 16 of the Indian Telegraph Act are vested in a public utility authority, prior consent of the

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landowner is not an indispensable requirement and the authority is entitled to enter upon private lands and execute infrastructure works in larger public interest. According to him, the Hon'ble Supreme Court recognised that such powers are necessary to facilitate uninterrupted development of essential public infrastructure and that insistence upon acquisition proceedings in every case would defeat the object of the legislation.

- 6.47. Referring particularly to paragraphs 20 and 21 of the judgment, learned counsel submits that the Hon'ble Supreme Court has explained the distinction between acquisition of ownership rights and conferment of a mere "right of user". The Hon'ble Supreme Court observed that the authority exercising powers under the Indian Telegraph Act does not acquire title over the land, but only obtains a limited statutory right to place and maintain infrastructure under, over or across the property, coupled with an obligation to cause minimal damage and compensate affected persons for actual loss sustained.

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- 6.48. Learned counsel submits that the scheme of Sections 39, 76 and 77 of the BWSSB Act is substantially analogous to the statutory scheme considered by the Hon'ble Supreme Court in Century Textiles. According to him, Section 77 of the BWSSB Act similarly creates a statutory right of user enabling the Bangalore Water Supply and Sewerage Board to lay and maintain sewerage lines beneath or across private property without acquisition of ownership rights, while simultaneously obligating the Board to compensate landowners for actual damage caused.

6.49. He submits that the ratio laid down by the Hon'ble Supreme Court clearly supports the proposition that exercise of statutory right of user for execution of public infrastructure projects does not amount to compulsory acquisition of land and therefore does not require payment of acquisition compensation equivalent to market value of the land. According to him, the only enforceable right preserved in favour of the landowner is the right to seek compensation for actual damage,

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diminution or injurious affection caused during exercise of such statutory powers.

6.50. Placing strong reliance on the judgment in Power Grid Corporation of India Limited v. Century Textiles & Industries Limited, learned counsel submits that the contentions advanced by the petitioners stand fully answered by the principles laid down by the Hon'ble Supreme Court. According to him, the Hon'ble Supreme Court has expressly recognised the primacy of public interest in matters concerning establishment of essential infrastructure such as electricity transmission networks and has held that individual objections cannot be permitted to obstruct implementation of public utility projects authorised by statute.

6.51. He submits that the same principle squarely applies to the present case, since sewerage and water supply infrastructure constitute essential civic amenities directly connected with public health, sanitation and urban administration. According to him, if transmission lines for national infrastructure projects can be laid

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across private lands on the basis of a statutory right of user without acquisition of ownership rights, there is no reason why a similar statutory mechanism under the BWSSB Act enabling laying of sewerage pipelines should be construed differently.

6.52. Learned counsel therefore submits that Sections 39 and 77 of the BWSSB Act are constitutionally valid and operate in the nature of statutory easements or rights of user created in public interest. Such provisions, according to him, neither violate Article 14 nor Article 300A of the Constitution, since the statute itself provides authority of law for exercise of such powers and also preserves the right of the landowner to seek compensation for actual damage suffered. He therefore submits that the petitioners are not entitled to seek prohibition against laying of sewerage lines or insist upon compulsory acquisition of the lands in question.

6.53. He refers to the order dated 13.04.2016 in G.Chandrashekhar vs. Karnataka Power

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Transmission Corporation Limited⁵, more particularly, para 2 thereof, which is reproduced hereunder for easy reference:

2. Though writ petition is liable to be dismissed at the threshold, in view of the power available to respondent to draw electric lines by entering upon lands of private citizens for the purpose of placing of electric supply lines, appliances and apparatus for the transmission of energy without consent of owners of such lands as held by this Court in NAGARAJU vs MAHALINGAPPA

reported in ILR 1990 KAR 1515, this Court is of the considered view that it would suffice for the present, if memo filed by respondent is placed on record and writ petition being disposed of accordingly, in the light of said memo, whereunder it is stated by the respondent that it has executed a scheme of construction of 66 KV D/C line from existing 220/66 KV Sarjapura Station to link existing 66 KV Chandapura - Dommasandra S/C Line near Muttanallur village limits by enclosing the sketch to the said memo indicating the towers in Location Nos.34, 34A and 35 which is situated at northern side of the land bearing Sy.No.17 of Gopasandra Village, Sarjapura Hobli, Anekal Taluk. Said memo also indicates that respondent has already erected tower in Location No.34 and stubbing work in Location Nos.34A and 35 has been completed.

6.54. By referring to G.Chandrasekhar's case, he submits that a co-ordinate bench of this Court, while dealing with the powers of the Karnataka Power Transmission Corporation Limited to draw electric transmission lines through private lands, reiterated the settled principle that

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statutory authorities engaged in execution of public utility infrastructure possess the authority to enter upon private property and carry out such works even without obtaining the consent of the landowner.

6.55. Learned counsel points out that in the said decision, reliance had been placed upon the earlier judgment of this Court in Nagaraju vs. Mahalingappa⁶, wherein it was held that the competent authority possessed statutory power to enter private lands for placing electric supply

lines, towers, appliances and apparatus necessary for transmission of electricity. According to him, the Court recognised that exercise of such powers is an incident of statutory authority conferred in public interest and that individual objections cannot override execution of essential infrastructure projects.

6.56. He submits that the aforesaid judgment once again affirms the distinction between acquisition of ownership rights over land and conferment of a limited statutory right to use the land for execution of public utility works.

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ILR 1990 KAR 1515

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According to him, the reasoning adopted in the said decision squarely applies to the present case involving laying of sewerage pipelines by the Bangalore Water Supply and Sewerage Board.

6.57. By relying upon the decision in G.Chandrashekhar⁵, learned counsel submits that the legal position is well settled that where statutory powers are conferred upon public utility authorities for execution of infrastructure projects, prior consent of the landowner is not an indispensable prerequisite unless expressly mandated by the statute. According to him, the authority of the BWSSB under Sections 39 and 77 of the BWSSB Act stands on the same footing as the powers exercised by electricity transmission authorities under the Electricity Act and the Indian Telegraph Act.

6.58. He submits that the petitioners cannot seek to prevent or stall execution of sewerage projects merely because the pipelines traverse private lands, particularly when the statute itself confers a right of user upon the BWSSB and provides a mechanism for payment of

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compensation for actual damage caused.
Learned counsel therefore contends that the petitioners are not entitled to the reliefs sought for and that the writ petitions deserve to be dismissed.

6.59. He refers to the decision of the judgment of the High Court of Judicature at Madras in Ponnusamy and others -v- The Union of India and others⁷, more particularly para 13 at page No.53, 14 at page No.54 and again Para 14 at page No.66, thereof, are reproduced hereunder for easy reference:

13. Section 10 that grants authority only for the limited purpose of establishing or maintaining a telegraph. It does not provide any other right to the telegraph authority. It is only a user in respect of the property over, which a telegraph line passes. By exercising such power, the authority does not become owner of the property and all that it gets is right of user of the property. The Section does not contemplate any notice or hearing before exercising such power to draw a telegraph line, although it envisages payment of compensation. However, it would not make exercise of power under Section 10, arbitrary or violative of the principles of Natural Justice as contemplated under Articles 14 and 21 of the Constitution. The right to property under Article 300A is a Constitutional right. It is not absolute and it can be taken away by authority of law.

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10.03.2021

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14. But Section 10 of the Telegraph Act, 1885, does not take away any right to property. It only creates some restrictions on the enjoyment of right to property by creating a right of user in the telegraph authority. Proviso (a) to Section 10 restricts the power of the telegraph authority only to the draw a telegraph line. It does not grant the Authority provision to use the power for any other purpose. The object is to provide to the Government or to any other licensee to place telegraph lines and posts which are projects, eminently in public interest. Further, under Proviso (d) the Authority should cause as little damage as possible while undertaking the work. It also mandates that the Authority must pay compensation to the affected person for the damage caused by reason of exercise of the power. Thus, Section 10 prescribes a just and fair procedure for placing limitations on full enjoyment of property. It therefore, cannot be said to be arbitrary and violative of Articles 14 and 21 or 300-A of the Constitution of India, just because it does not contain any provision for issuance of notice or giving hearing to affected person before the work is undertaken.

14. But Section 10 of the Telegraph Act, 1885, does not take away any right to property. It only creates some restrictions on the enjoyment of right to property by creating a right of user in the telegraph authority. Proviso (a) to Section 10 restricts the power of the telegraph authority only to the draw a telegraph line. It does not grant the Authority provision to use the power for any other purpose. The object is to provide to the Government or to any other licensee to place telegraph lines and posts which are projects, eminently in public interest. Further, under Proviso (d) the Authority should cause as little damage as possible while undertaking the work. It also mandates that the Authority must pay compensation to the affected person for the damage caused by reason of exercise of the power. Thus, Section 10 prescribes a just and fair procedure for placing limitations on full enjoyment of property. It therefore, cannot be said to be arbitrary and violative of Articles 14

and 21 or 300-A of the Constitution of India,
just because it does not contain any provision
for issuance of notice
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<https://www.mhc.tn.gov.in/judis/> or giving
hearing to affected person before the work is
undertaken.

6.60. By referring to Ponnusamy's⁷ case, he
submits that the Hon'ble Madras High Court,
while interpreting Section 10 of the Indian
Telegraph Act, 1885, has categorically held that
the statutory power conferred upon the
telegraph authority does not amount to
acquisition of ownership rights over the land
but merely creates a limited "right of user" in
favour of the authority for the purpose of
establishing and maintaining telegraph lines.

6.61. Learned counsel submits that the said
judgment recognises that the telegraph
authority does not become owner of the
property over which the lines pass and acquires
no rights beyond the limited statutory user
contemplated under the enactment. The Court
further held that though Section 10 does not
contemplate prior notice or hearing before
exercise of such powers, the provision cannot
be regarded as arbitrary or violative of Articles
14, 21 or 300A of the Constitution, since the
statute itself constitutes authority of law and

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simultaneously provides safeguards requiring
minimal damage and payment of

6.62. Learned counsel submits that the Hon'ble Madras High Court specifically observed that Section 10 of the Telegraph Act does not divest the landowner of proprietary rights but merely imposes limited restrictions upon enjoyment of the property in larger public interest. The Hon'ble Madras High Court also recognised that the object of such statutory provisions is to facilitate execution of public utility infrastructure projects and that the statutory obligation to cause as little damage as possible and pay compensation for actual damage suffered constitutes a fair and reasonable safeguard protecting the rights of affected landowners.

6.63. By relying upon the aforesaid decision in Ponnusamy⁷, learned counsel submits that the principles laid down therein squarely apply to the interpretation of Sections 39 and 77 of the BWSSB Act. According to him, the statutory right conferred upon the Bangalore Water
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Supply and Sewerage Board to lay sewerage pipelines beneath or across private lands is likewise only a limited right of user and does not amount to acquisition of ownership rights over the property.

6.64. He submits that merely because the landowner's unrestricted enjoyment of the property is subjected to certain statutory limitations, it cannot be contended that there is unconstitutional deprivation of property attracting compulsory acquisition. According to him, the BWSSB Act itself provides sufficient safeguards by obligating the Board to minimise damage and compensate affected persons for actual injury or injurious affection caused during execution of the work.

6.65. Learned counsel therefore submits that

Sections 39, 76 and 77 of the BWSSB Act constitute valid statutory provisions enacted in larger public interest for facilitating essential civic infrastructure and cannot be struck down or read down merely because they do not provide for acquisition of ownership rights or payment of acquisition compensation in every

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case where sewer lines are laid beneath private property.

6.66. He refers to the decision of the Hon'ble Supreme Court, dated 2.02.2023 in Ashwini Kumar Upadhyay vs. Union of India and Another⁸, more particularly para 11 and 12 thereof, which are reproduced hereunder for easy reference:

11 A statutory provision can be challenged before the Court either on the ground that it has been made by a legislature which lacks legislative competence to enact a law or on the ground that there is a violation of a Fundamental Right in Part III of the Constitution. The former is not in issue.

12 Permitting a candidate to contest from more than one seat in a Parliamentary election or at an election to the State Legislative Assembly is a matter of legislative policy. It is a matter pertaining to legislative policy since, ultimately, Parliament determines whether political democracy in the country is furthered by granting a choice such as is made available by Section 33(7) of the Act of 1951. A candidate who contests from more than one seat may do so for a variety of reasons not just bearing on the uncertainty which the candidate perceives of an election result. There are other considerations which weigh in the balance in determining whether this would restrict the course of electoral democracy in the country. This is a matter where Parliament is legitimately entitled to make legislative choices and enact or

amend legislation. The Law Commission and the Election Commission may at the material time have expressed certain viewpoints. Whether they should be converted into a mandate of the

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law depends on the exercise of Parliamentary sovereignty in enacting legislation. Absent any manifest arbitrariness of the provision so as to implicate the provisions of Article 14 or a violation of Article 19, it would not be possible for this Court to strike down the provision as unconstitutional.

6.67. By referring to Ashwini Kumar Upadhyay's⁸ case, he submits that learned counsel submits that the Hon'ble Supreme Court has reiterated the settled principle that a statutory provision can be invalidated only on limited constitutional grounds, namely, lack of legislative competence or violation of fundamental rights guaranteed under Part III of the Constitution.

6.68. Learned counsel submits that the Hon'ble Supreme Court has further emphasised that matters involving legislative policy fall primarily within the domain of the legislature and that Courts ordinarily do not interfere with such policy choices unless the provision is shown to be manifestly arbitrary or violative of constitutional guarantees. According to him, the Hon'ble Supreme Court recognised that where the legislature has consciously made a policy determination balancing competing public interests, judicial review remains limited and

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the wisdom of the legislative choice cannot ordinarily be substituted by judicial opinion.

6.69. By relying upon the aforesaid decision in Ashwini Kumar Upadhyay⁸, learned counsel submits that the provisions contained in Sections 39, 76 and 77 of the BWSSB Act represent a conscious legislative policy evolved to facilitate creation and maintenance of essential water supply and sewerage infrastructure in the Bangalore Metropolitan Area. According to him, the legislature, while enacting the BWSSB Act, has consciously chosen to confer a statutory right of user upon the Bangalore Water Supply and Sewerage Board instead of mandating compulsory acquisition of ownership rights in every case where pipelines or sewerage infrastructure are laid beneath private lands.

6.70. He submits that such legislative policy decisions are based upon practical considerations concerning urban planning, public sanitation, financial feasibility and effective discharge of civic functions and therefore cannot be lightly interfered with in exercise of writ jurisdiction.

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According to him, unless the petitioners establish manifest arbitrariness or direct violation of constitutional guarantees, the statutory scheme cannot be declared unconstitutional merely because the petitioners may prefer a different policy framework involving compulsory acquisition and payment of market-value compensation.

6.71. Learned counsel contends that the BWSSB Act itself contains safeguards requiring the Board to minimise damage and compensate affected landowners for actual injury or injurious affection. Therefore, the statutory framework cannot be characterised as arbitrary or

confiscatory so as to offend Articles 14 or 300A of the Constitution. He accordingly submits that the constitutional challenge mounted by the petitioners is devoid of merit and liable to be rejected.

6.72. He refers to judgment dated 9.12.2022 in

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Apartment	Owners	Association		vs.
Bangalore Water Supply And Sewerage				

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Board9, more particularly para 5, 6 and 7, the operative portion of the order is reproduced hereunder for easy reference:

5. Having heard the learned counsel for the parties and having perused the Petition Papers, this Court is inclined to grant conditional indulgence in the matter inasmuch as the BWSSB being a statutory authority, is empowered under Sections 77 & 78 of the 1964 Act to lay sewage and water supply lines in any property whether private or public, as rightly argued by learned Sr. Advocate Mr.H.N.Shashidhar appearing for the Petitioner and the learned Sr. Panel Counsel Mr.B.L.Sanjeev appearing for the BBMP. The text of Sections 77(1) & 78(1) of the 1964 Act, is as under:

"77. Rights of user of property for sewers.--(1) The Board may place and maintain sewers over, under, along or across any immovable property whether within or without the local limits of the Bangalore Metropolitan Area, without acquiring the same, and may at any time for the purpose of examining, repairing, altering or removing any sewers enter on any property over, under, along or across which the sewers have been laid:

Provided that the Board shall not acquire any right other than a right of user in the property over, under, along or across which any sewer is

laid.

78. Power of owner of premises to lay sewer through land belonging to other persons.--(1) If it appears to the Board that the only or most convenient means of sewerage of any premises is by laying any sewer over, under, along or across the immovable property of another person, the Board may, by order in writing, authorise the owner of the premises to lay or carry such sewer over, under, along or across such immovable property:

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Provided that before making any such order the Board shall give to the owner of the immovable property a reasonable opportunity of showing cause within such time as may be prescribed by regulations made in this behalf as to why the order should not be made:

Provided further that the owner of the premises shall not acquire any right other than a right of user in the property over, under, along or across which any such sewer is laid."

6. The provisions of Section 77 authorise the BWSSB to enter any private land for laying, repairing or re-laying the sewage lines beneath the private property of the citizens even without any acquisition. However, for the damage if caused during the accomplishment of said task, to the private property of the citizen, the Section provides for payment of compensation. The payment of compensation is not and cannot be a sine qua non for undertaking the task in question. The compensation in the text and context of this Section is nothing but the damages for the loss caused to the owner of the property and not for the apprehended loss. The section does not indicate the anticipatory compensation. An argument to the contrary would militate against the content & intent of

the said provision. No law or Ruling is cited by the counsel for the contesting Respondents to support an otherwise construction of this provision. The BWSSB is a statutory public body. The civic life of the city depends upon the functions of this body. That is the reason why peculiar and special provisions like Section 77 are made in the Act. The difficulty of the BWSSB in the absence of such a provision is easily understandable. The public interest in which the BWSSB functions has to have primacy over the private interest of the persons. It is not that the legal injury the citizen suffers by the operation of the agencies of the BWSSB is without remedy. The Section itself mentions the right and remedy for its violation. Presently the work of the BWSSB which is half way through is at halt because of obstruction by the quarters that be.

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7. The apprehension of counsel for the Respondent Nos.5 & 6 that there is a traditional well which may get polluted or damaged by virtue of likely seepage of water/sewage line causing health hazard, also cannot be overlooked. This is agreed to be addressed by the BWSSB with the concurrence of the Petitioner by filing a Memo dated 8.12.2022 which reads as under:

"The Respondents No.1 to 3 submit that there is a WELL in the vicinity of the Respondent No.5 & 6 Apartment Blocks.

The Respondents No.1 to 3 have initiated the task of providing Sewerline to the Petitioner Association. In this regard the Respondents No.1 to 3 submit that they will undertake periodical maintenance of the sewer lines to ensure that there is no leakage of sewage. It is submitted that in the event of any sewage leak/overflow inspite of regular maintenance, the Respondents No.1 to 3 shall ensure correctional measures no sooner it is brought to their knowledge.

It is further prayed that this Hon'ble Court be pleased to permit the Respondents No.1 to 3 to make use of their men, material, machinery through the Road where the sewer lines are now being laid in the interest of justice & equity."

- 6.73. By referring to Sohams Bicester Village Block 'B' Apartment Owners Association's case, he submits that a Co-ordinate bench of this Court has once again recognised the statutory authority of the Bangalore Water Supply and Sewerage Board under Sections 77 and 78 of the BWSSB Act to lay sewerage and water supply lines through private as well as

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public properties without resorting to acquisition proceedings.

- 6.74. Learned counsel submits that in the said judgment, this Court specifically interpreted Section 77 as conferring power upon the BWSSB to enter upon private lands for laying, repairing or re-laying sewerage pipelines even without acquisition of the property. The Court further held that the compensation contemplated under Section 77 is compensation for actual damage caused during execution of the work and not anticipatory compensation for speculative or apprehended loss alleged by the landowner. According to him, the Court categorically rejected the contention that payment of compensation is a condition precedent for undertaking sewerage works.

- 6.75. He further submits that this Court, in the aforesaid decision, also recognised the overriding public interest underlying the statutory scheme and observed that the civic life of the city substantially depends upon the efficient functioning of the BWSSB. The Court

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by sewerage infrastructure projects must receive primacy over individual objections, particularly when the statute itself provides a remedy by way of compensation for actual injury suffered by the affected landowner.

6.76. Learned counsel points out that the Court additionally balanced the concerns of nearby residents regarding possible pollution or seepage from sewer lines by recording the undertaking furnished by the BWSSB assuring periodic maintenance, rectification of leakages and preventive safeguards. According to him, the said decision demonstrates that while the Court protects legitimate concerns of affected citizens, it nevertheless recognises and upholds the statutory authority of the BWSSB to proceed with public utility projects in accordance with Sections 77 and 78 of the Act.

6.77. By relying upon the judgment in Sohams Bicester Village Block 'B' Apartment Owners Association's case, learned counsel submits that the legal position concerning the scope of Sections 77 and 78 of the BWSSB Act is now well settled. According to him, the said

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provisions expressly authorise the BWSSB to create and maintain sewerage infrastructure beneath or across private property by exercising only a limited right of user and without acquiring ownership rights over the land.

6.78. He submits that the judgment clearly holds that the compensation contemplated under the Act is restricted to actual damage or injurious affection caused during execution and maintenance of the work and does not extend to compulsory acquisition compensation or anticipatory damages based on hypothetical future restrictions. According to him, the petitioners' attempt to construe Sections 39, 76 and 77 as mandating acquisition proceedings is directly contrary to the ratio laid down in the aforesaid decision.

6.79. Learned counsel therefore submits that the statutory provisions under challenge have repeatedly been upheld and interpreted by this Court in a manner recognising the primacy of public interest, the limited nature of the right of user created in favour of the BWSSB and the

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restricted compensatory mechanism contemplated under the Act. Consequently, he submits that the petitioners are not entitled to any of the reliefs sought for in the present writ petitions.

6.80. He refers to the decision of the Hon'ble Apex court in Goa Glass Fibre Ltd. & Anr vs. State of Goa and Anr¹⁰, more particularly paragraphs 24, 25 and 26 thereof which are reproduced hereunder for easy reference:

24. It is no doubt true that the Judgment dated 19/24.04.2001 is in appeal before this Court in a batch of Special Leave Petitions and the validity of the impugned Act does not depend upon the result of the said Special Leave Petitions. In our opinion, the Act must stand or fall on its own strength. It cannot also be said that the Act seeks to give effect to the judgment dated 19/24.04.2001 of the High Court having regard what the State aims at or seeks to achieve by it. It is a well settled law

that the legislature can render the judicial decision ineffective by enacting a valid law on the subject within its legislative field by removing the base on which the decision was rendered. The impugned Act meets and satisfies the Constitutional Test completely. The Act also satisfies parameters laid down by this Court in various judgments. Further the competence of the State Legislature to enact the Act impugned is traceable to Entry No. 38 in List III to the VII Schedule of the Constitution of India. The petitioners have not challenged the competence of the State Legislature to enact the Act impugned. Therefore, the challenge made by

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the petitioners to the constitutionality of the Act on this ground must fall.

25. The next contention urged by the petitioners is that, the Act does not seek to validate any action which has been held to be invalid by any Court of Law, but only seeks to nullify the judgment of this Court. This contention should also fail for the reasons already explained in the preceding paragraphs.

26. The next contention of the petitioners is that the impugned Act is unconstitutional, because it seeks to take away the fundamental rights guaranteed to the petitioners under Article 14 and 19(1)(g) of the Constitution of India. While the argument based on Article 19(1)(g) of the Constitution of India was not urged seriously by the petitioners and rightly so, as no citizen is before this Court with a complaint that his fundamental rights guaranteed under this Article of the Constitution is violated by the State under the Act impugned. As regards the challenge to the validity of the Act on the allegations of violation of Article 14 of the Constitution of India, the

petitioners have laid no basis thereof. There is nothing in the Act which suggests invidious discrimination, unreasonable classification or manifest violation of equality clause. In the absence of any valid ground under Article 14 of the Constitution of India, the Writ Petition under Article 32 itself is not maintainable and liable to be dismissed.

- 6.81. By referring to Goa Glass Fiber Ltd.¹⁰ case, he submits that the Hon'ble Supreme Court has reiterated the settled principles governing constitutional challenges to statutory enactments and has held that a legislation must be tested on the touchstone of legislative

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competence and violation of constitutional guarantees, particularly fundamental rights.

- 6.82. Learned counsel submits that the Hon'ble Supreme Court in the said case observed that a statutory enactment must stand or fall on its own strength and that the legislature is competent to enact laws within its legislative field so long as the enactment satisfies constitutional requirements. The Hon'ble Supreme Court further held that a challenge founded upon Article 14 of the Constitution cannot succeed in the absence of any material demonstrating invidious discrimination, unreasonable classification or manifest arbitrariness.

- 6.83. He further submits that the Hon'ble Supreme Court also emphasised that unless a clear constitutional infirmity is established, Courts ought not to invalidate legislative measures enacted in public interest. According to him, mere disagreement with legislative policy or dissatisfaction with the consequences of the statutory scheme cannot furnish a valid ground for striking down a statutory provision.

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6.84. By relying upon the aforesaid decision in Goa Glass Fibre Ltd's case¹⁰, learned counsel submits that the constitutional challenge mounted by the petitioners against Sections 39, 76 and 77 of the BWSSB Act is wholly unsustainable. According to him, the petitioners have neither questioned the legislative competence of the State Legislature to enact the BWSSB Act nor established any manifest arbitrariness, hostile discrimination or unconstitutional classification so as to attract Article 14 of the Constitution.

6.85. He submits that the statutory provisions merely create a regulated right of user in favour of the Bangalore Water Supply and Sewerage Board for the purpose of establishing and maintaining essential civic infrastructure and simultaneously provide safeguards requiring minimisation of damage and payment of compensation for actual injury caused. According to him, such a statutory framework cannot be characterised as confiscatory or unconstitutional merely because it does not contemplate compulsory acquisition and payment of market-value compensation in every case.

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6.86. Learned counsel therefore contends that the petitioners have failed to lay any factual or legal foundation demonstrating violation of Articles 14 or 300A of the Constitution. He submits that the challenge is founded essentially upon disagreement with legislative policy and the manner in which the statute

balances public interest with private property rights, which by itself cannot constitute a ground for declaring the provisions unconstitutional. Consequently, he submits that the writ petitions are liable to be dismissed.

- 6.87. His submission, therefore, is that there being a statutory right under Section 76 and 77 of the BWSSB Act, recognised for the purposes of laying of sewage pipe on a private property without compensation, said right being conferred on the BWSSB in the larger public interest of providing water and sewerage connection, a private interest has to yield to a larger public interest and therefore, it cannot be contended that such power is in violation of the Constitution of India rendering Section 76 and 77 ultra vires the Constitution. His submission is that the writ petitions making out

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no grounds, it is required to be dismissed in limine.

7. Heard Sri.Sampath.A, learned counsel for the Petitioner, Sri.K.B.Monesh Kumar, learned counsel for respondents No.1 and 2 in W.P. No.8296/2015 and Sri.Puneeth.K, learned counsel for the Petitioner, Sri.M.Srinivas Kumar, learned HCGP for respondent No.1 and Sri.K.B.Monesh Kumar, learned counsel for respondent No.2 in W.P. No.7754/2018. Perused papers.

8. The points that would arise for consideration are:

- i. Whether the Bangalore Water Supply and Sewerage Board is empowered under Sections 39, 76, 77 and 92 of the BWSSB Act, 1964 to lay and maintain sewerage pipelines over, under, along or across private property without acquiring ownership rights over such land?
- ii. Whether the "right of user"

contemplated under Section 77 of the BWSSB Act amounts to deprivation or acquisition of property so as to attract compulsory acquisition proceedings and payment of compensation under the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013?

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- iii. Whether Sections 39, 76 and 77 of the BWSSB Act, insofar as they permit laying of sewerage infrastructure through private property without acquisition, are violative of Articles 14 and 300A of the Constitution of India?
- iv. Whether the compensation contemplated under Sections 39(2), 77(2) and 92(3) of the BWSSB Act is confined only to actual damage or injurious affection caused to the land, or whether the landowners are entitled to compensation equivalent to the acquisition of the affected land?
- v. Whether the restrictions imposed under Section 76 of the BWSSB Act relating to non-construction and maintenance clearances around sewer lines result in such substantial deprivation of proprietary rights as to necessitate the acquisition of the land?
- vi. Whether Section 127A of the BWSSB Act mandates compulsory acquisition of private lands whenever sewerage pipelines or related infrastructure are laid beneath or across such lands?
- vii. Whether the actions of the respondents in the facts of W.P. No.8296/2015 and W.P. No.7754/2018 are arbitrary, illegal or

unconstitutional and violative of the
petitioners' rights under Article 300A
of the Constitution of India?

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viii. Whether the petitioners are entitled to
the reliefs sought for in the present
writ petitions?

ix. What Order?

9. This Court answers the above points as under:

10. Answer to Point No (i): Whether the Bangalore
Water Supply and Sewerage Board is
empowered under Sections 39, 76, 77 and 92 of
the BWSSB Act, 1964 to lay and maintain
sewerage pipelines over, under, along or across
private property without acquiring ownership
rights over such land?

10.1. Sri Sampath A., learned counsel for the
petitioners, submitted that the respondents
cannot enter upon private lands and either
attempt to lay or actually lay sewerage
pipelines without first acquiring the affected
lands in accordance with law. According to him,
such action would seriously interfere with
proprietary rights protected under Article 300A
of the Constitution of India. He contended that
the powers conferred under the BWSSB Act are
powers of entry and execution intended only for
limited purposes and cannot be construed as
authorising the creation of permanent
infrastructure beneath private lands without

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acquisition or some equivalent lawful transfer of rights.

10.2. Learned counsel relied upon Section 127A of the BWSSB Act and submitted that wherever private land is required for purposes of the Act, the statute itself prescribes the appropriate mechanism, namely acquisition through the State or consensual purchase with prior Government approval. Therefore, the Board cannot bypass that statutory route by invoking general powers under other provisions. Reliance was also placed upon Section 39 to contend that even while permitting laying of mains upon private lands, the Act expressly recognises the rights of landowners by providing compensation for damage and injurious affection, thereby indicating that private property cannot be treated as freely available for public utility works.

10.3. He further relied upon Sections 76 and 77 and submitted that these provisions cannot be read in isolation from Section 127A. According to him, Section 77 cannot be interpreted as an unrestricted charter permitting the creation of

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permanent sewerage infrastructure beneath private lands, as such an interpretation would authorise continuing invasion of private property without acquisition, consent, or constitutionally adequate compensation.

Reliance was also placed upon Section 63 to contend that once the Board asserts vesting of sewerage works and of the sub-soil necessary for maintenance, the resulting burden upon the landowner is substantial enough to demonstrate that the arrangement is not merely one of temporary access but creates a serious legal encumbrance upon the property.

10.4. Per contra, Sri K.B. Monesh Kumar, learned

counsel appearing for the BWSSB, submitted that the statutory scheme expressly empowers the Board to lay mains and sewers over, under, along or across private property and consciously distinguishes between acquisition of ownership and acquisition of a limited right of user. Referring to Section 39, he submitted that the Board is authorised to lay mains even over private lands and, where consent is withheld, the proviso enables the Board to proceed after issuing written notice.

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10.5. He further relied upon Sections 63, 64 and 92 and submitted that sewerage works and their control vest in the Board in furtherance of its statutory obligation to maintain sewerage infrastructure for Bengaluru. According to him, the legislature has intentionally conferred broad powers of access and execution while simultaneously imposing obligations to minimise damage and compensate for any loss caused.

10.6. It was further submitted that Sections 39, 76, 77 and 92 must be construed harmoniously and purposively having regard to the object of the BWSSB Act, namely effective water supply and sewerage management as an essential public utility. Learned counsel argued that the petitioners' interpretation would render city-wide sewerage projects practically unworkable by requiring compulsory acquisition every time a pipeline crosses private land. Reliance was placed upon M. Babanna v. State of Karnataka³, including the affirming judgment of the Division Bench, and upon Power Grid Corporation of India Limited⁴ to contend that a statutory right of user for essential public

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infrastructure may be exercised without acquisition of ownership.

10.7. The answer to this point must begin with the relevant statutory provisions relied upon by both parties. Section 39 empowers the Board to lay a main within or outside the Bangalore Metropolitan Area, including over or upon private lands, and further authorises the Board to proceed after written notice, even where consent is withheld. Section 39(2) separately provides compensation to every person interested in the land for damage done or injurious affection caused by laying, inspection, repair, alteration, renewal or removal of such mains.

10.8. Section 77 assumes central significance. It expressly authorises the Board to place and maintain sewers over, under, along or across any immovable property without acquiring the same and permits entry upon the property for purposes of examination, repair, alteration or removal of such sewerage works. The proviso to Section 77(1) expressly restricts the Board to the acquisition of no right beyond a right of

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user in the property through which the sewer passes. Section 77(2) simultaneously imposes obligations upon the Board to cause as little damage as possible and to make full compensation for any damage caused.

10.9. Section 76 complements Section 77 by regulating activities over sewerage infrastructure and prescribing minimum clearances, while Section 92 separately authorises entry upon adjoining lands for access, materials and ancillary activities connected with the work. That provision also

incorporates corresponding obligations to
minimise damage and provide compensation.

10.10. Read together, Sections 39, 76, 77 and 92 reveal a clear legislative scheme comprising powers of access, execution, maintenance and control, coupled with procedural and compensatory safeguards. The statutory framework, therefore, distinguishes between the acquisition of ownership and the conferment of a limited right of user for public utility purposes.

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10.11. The petitioners are correct in contending that private property cannot be dealt with by public authorities except in accordance with law and that Article 300A protects citizens against arbitrary deprivation of property. Their reliance upon Section 127A is also justified to the extent that the provision contemplates acquisition or consensual purchase where land itself is required for purposes of the Act.

10.12. However, Section 127A cannot be interpreted in a manner that renders Section 77 otiose. Section 77 expressly authorises the Board to place and maintain sewers without acquiring ownership and specifically limits the rights acquired to a right of user alone. If the legislature intended acquisition of ownership to be mandatory in every case where a sewer line traversed private property, Section 77 would have been unnecessary in its present form.

10.13. The proper reconciliation between Sections 39, 77 and 127A, therefore, is this: where the Board requires ownership of land or such extensive and exclusive dominion as cannot be accommodated within a limited statutory right

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of user, it must proceed under Section 127A. Conversely, where the statute itself contemplates only a limited, non-possessory right of user for laying and maintaining mains and sewers, the Board may proceed under Sections 39 and 77, subject always to the statutory safeguards and compensatory obligations.

10.14. A right of user is conceptually distinct from acquisition of ownership. Ownership ordinarily includes rights of possession, exclusion, enjoyment and disposition, whereas a right of user creates only a restricted statutory entitlement for a specified purpose without transfer of title or possession. The legality of the exercise therefore, depends upon the burden remaining confined within those statutory limits.

10.15. The respondents' submissions stand fortified by the judgment in M.Babanna v. State of Karnataka³, wherein it was held that Section 77 authorises entry upon private land for laying or re-laying sewerage lines even without acquisition proceedings and that compensation

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for damage is not a condition precedent for undertaking the work itself. The Hon'ble Division Bench, affirming that decision, reiterated that Section 77 enables laying of sewerage lines beneath private property without acquisition, subject to compensation for damage caused.

10.16. The decision in Power Grid Corporation of India Limited⁴, though arising under a different enactment, is relevant for the limited principle distinguishing acquisition of ownership

from conferment of a statutory right of user. Similar principles have also been recognised in Ponnusamy and others v. Union of India⁷ and others and Sohams Bicester Village Block 'B' Apartment Owners Association v. Bangalore Water Supply and Sewerage Board⁹.

- 10.17. Merely because the title remains with the owner, however, does not conclude the constitutional enquiry under Article 300A. The Court must examine whether the extent of interference remains within the limits of a statutory right of user or whether it effectively

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amounts to a substantial deprivation of the ordinary incidents of ownership. Where the practical consequence of the work substantially impairs meaningful use and enjoyment of the property, the authority may be required to proceed by way of acquisition under Section 127A.

- 10.18. Equally, the respondents are correct in contending that compulsory acquisition cannot be treated as a mandatory precondition in every case where a sewer or main traverses private land. Sewerage systems are network-based public infrastructure requiring continuity of alignment over extensive urban and peri-urban areas. Requiring the acquisition of title for every crossing would substantially impair the statutory object of planned sewerage and sanitation.

- 10.19. At the same time, the statutory provisions and the authorities relied upon by the respondents do not permit the Board to act as though private rights are devoid of value. The legislative scheme consistently links power with restraint by requiring minimal damage, limiting

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the Board to a right of user and mandating compensation for injury caused.

10.20. Accordingly, this court answers Point No. (i) by holding that Sections 39, 76, 77 and 92 of the BWSSB Act confer statutory authority upon the Board to lay and maintain sewerage pipelines over, under, along or across private property without acquisition of ownership, where only a limited right of user is required. Such authority, however, remains subject to strict compliance with the statutory safeguards, including observance of procedural requirements, minimisation of injury, and payment of compensation for damage or injurious affection. Where the extent of interference substantially exceeds a limited right of user and effectively results in deprivation of ordinary enjoyment of the property, the Board would be required to proceed under Section 127A.

11. Answer to Point No (ii): Whether the "right of user" contemplated under Section 77 of the BWSSB Act amounts to deprivation or acquisition of property so as to attract compulsory acquisition proceedings and payment of compensation under the Right to Fair Compensation and Transparency in Land

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Acquisition, Rehabilitation and Resettlement Act, 2013?

11.1. Sri Sampath A., learned counsel appearing for the petitioners, submitted that the so-called right of user contemplated under Section 77 of the BWSSB Act is neither nominal nor temporary in nature. According to him, once

sewerage lines are placed beneath private property, the Board acquires continuing rights of access, inspection, repair, alteration, removal and operational control. Further, Section 76 imposes restrictions concerning construction activities and prescribes clearance requirements around sewer lines and related structures. He submitted that the cumulative effect of these provisions substantially diminishes the owner's freedom of use, development potential and beneficial enjoyment of the affected property.

- 11.2. Learned counsel argued that such continuing restrictions effectively deprive the landowner of full dominion over the property and adjoining areas. According to him, the consequences extend beyond temporary inconvenience and, in substance, amount to compulsory acquisition or deprivation of property, thereby attracting

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acquisition proceedings and compensation in terms of the law governing compulsory acquisition, including the provisions of the 2013 Act.

- 11.3. Reliance was also placed upon Section 63 to contend that statutory vesting of sewerage works and the sub-soil necessary for maintenance demonstrates that the effect upon the owner is neither insignificant nor transitory. According to him, the combined operation of Sections 63, 76 and 77 results in permanent appropriation of the affected strip and surrounding clearance area and that the Board cannot avoid acquisition merely by describing the burden as a statutory right of user.
- 11.4. Per contra, Sri K.B. Monesh Kumar, learned counsel appearing for the BWSSB, submitted that Section 77 expressly excludes acquisition of ownership and preserves only a limited right of user in favour of the Board. He submitted that ownership and title continue to vest in the landowner and that the Board merely acquires

a restricted statutory entitlement necessary for discharging an essential public utility function.

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11.5. He further submitted that compensation contemplated under Sections 39, 77 and 92 relates to actual damage, injurious affection, temporary disturbance or diminution resulting from execution of the work and not compensation equivalent to acquisition value, since title in the property itself is never divested. Reliance was placed upon M. Babanna v. State of Karnataka³, the affirming judgment of the Hon'ble Division Bench in the same matter, Power Grid Corporation of India Limited v. Century Textiles Industries Limited⁴, Ponnusamy and others v. Union of India and others⁷ and G. Chandrashekhar v. Karnataka Power Transmission Corporation Limited⁵.

11.6. The rival submissions raise an important issue concerning the distinction between the legal character of a statutory right and the practical consequences arising from its exercise. The petitioners' case, in substance, is that irrespective of the terminology employed by the statute, the actual burden imposed upon the property is so substantial and continuing in nature that it should be treated as an

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acquisition in law. The respondents, on the other hand, contend that the legislature itself has consciously maintained a distinction between ownership and user and that such a distinction cannot be ignored.

11.7. The Court is of the view that the issue cannot be answered merely by reference either to statutory language in abstraction or solely by reference to practical consequences divorced from legislative intent. While the Court cannot ignore the real impact of a statutory burden upon proprietary rights, it equally cannot disregard the express language employed by the legislature. The function of the Court, therefore, is to ascertain the true legal character of the right created by the statute and determine whether its practical consequences remain within the limits of that statutory design.

11.8. At the outset, it must be noticed that Article 300A of the Constitution protects citizens against deprivation of property except by authority of law. Though no longer a fundamental right, the right to property

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nevertheless remains a valuable constitutional and legal right which cannot be interfered with except through a valid statutory process. The requirement of "authority of law" under Article 300A does not merely contemplate the existence of a statutory provision; it equally requires that such statutory power be exercised within the boundaries contemplated by law and not in an arbitrary or disproportionate manner.

11.9. Therefore, where legislation creates a statutory right of user over private property, constitutional scrutiny cannot cease merely because title technically remains with the owner. The Court must examine whether the burden imposed remains a limited burden incidental to a defined public purpose or whether, in practical effect, it substantially destroys the ordinary incidents of ownership. The constitutional enquiry, therefore, concerns substance as well as form.

11.10. At the same time, constitutional interpretation cannot proceed upon assumptions that disregard express statutory language. Section 77 assumes central significance in this regard.

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The provision expressly authorises the Board to place and maintain sewers over, under, along or across immovable property without acquiring the same. More importantly, the proviso to Section 77(1) expressly states that the Board shall acquire no right other than a right of user in the affected property.

11.11. The legislative intent could scarcely have been expressed in clearer terms. The statute itself consciously distinguishes between acquisition of ownership and conferment of a limited statutory right of user. The expression "right of user" therefore cannot be treated as an empty phrase or merely a matter of legislative description.

11.12. Ownership ordinarily carries with it the bundle of rights relating to possession, exclusion, enjoyment and disposition of property. A right of user, on the other hand, creates a limited statutory entitlement permitting use of another's property for a specific purpose while leaving title and ownership with the landowner. Thus, the enquiry is not whether some burden is imposed upon the property, because every

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right of user necessarily creates some burden; the enquiry is whether the burden imposed substantially extinguishes the incidents of

ownership itself.

11.13. The statutory framework of the BWSSB Act itself demonstrates that the legislature has recognised this distinction. Section 127A contemplates situations where the acquisition or purchase of land becomes necessary. Sections 39, 77 and 92, however, proceed on an entirely different basis. Those provisions contemplate execution of public utility works through creation of a limited burden upon land, accompanied by corresponding obligations regarding compensation and minimisation of injury.

11.14. The significance of this distinction becomes apparent when the practical realities of public utility infrastructure are considered. Sewerage systems function as integrated networks extending across large geographical areas and require continuity of alignment. Their design depends upon topography, engineering requirements, gravity flow, public health

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considerations and urban planning needs. If acquisition of ownership were treated as mandatory each time a sewer line crossed private property, even a narrow underground alignment traversing multiple properties would require fragmented acquisition proceedings in respect of every affected parcel of land.

11.15. Such an interpretation would substantially impede the execution of essential public infrastructure and frustrate the object sought to be achieved by the legislation. Public utility enactments necessarily seek to strike a balance between individual proprietary rights and larger public interest considerations. Excessive emphasis upon either at the complete expense of the other would defeat the statutory purpose.

11.16. At the same time, public necessity cannot

become a justification for unrestricted intrusion upon private rights. The existence of statutory power does not imply unregulated power. Every provision relied upon by the respondents simultaneously imposes corresponding duties and limitations. Section 77 requires the

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authority to cause as little damage as possible and to make full compensation for damage caused. Section 39 separately recognises compensation for damage and injurious affection, while Section 92 similarly incorporates obligations concerning minimisation of injury and compensation.

11.17. These safeguards are not incidental provisions of minor significance but constitute integral limitations upon the exercise of statutory power itself. The authority cannot invoke the power while disregarding the accompanying obligations.

11.18. This Court is also unable to accept the proposition that compensation under Sections 39 and 77 should be narrowly confined to visible physical damage arising during execution of the work. Such an interpretation would substantially dilute the protection intended by the statute itself.

11.19. The expression "full compensation for any damage caused" occurring in Section 77(2) and the expression "damage done to or injurious affection of land" occurring in Section 39(2)

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cannot be understood in a restrictive sense. Damage caused to property is not limited to surface injury. It may include diminution in value, impairment of utility, adverse impact upon future use, reduction in beneficial enjoyment and other measurable consequences resulting from the work undertaken.

11.20. Consequently, where an underground sewer alignment materially affects basement construction, redevelopment potential, structural planning, commercial utility, future expansion, marketability or other incidents of beneficial enjoyment, such consequences cannot be disregarded merely because ownership formally continues with the landowner.

11.21. This Court therefore finds merit in the petitioners' submission to the limited extent that the burden created by a right of user cannot be treated as insignificant or merely theoretical. Continuing underground utility alignments may, in individual cases, create serious and enduring consequences for owners.

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11.22. However, the seriousness of the burden by itself does not alter the legal nature of the right created by statute. Section 77 itself contemplates that ownership remains with the landowner while a defined burden is imposed for a specified public purpose. The owner loses part of the unrestricted freedom of use, but does not lose the title itself.

11.23. The judgments relied upon by the respondents reinforce this distinction. M. Babanna v. State of Karnataka³ and the affirming Division Bench decision recognise that Section 77 authorises laying of sewerage lines beneath private property without acquisition proceedings while preserving the owner's right to compensation. Similarly, Power Grid Corporation of India Limited v. Century Textiles Industries

Limited⁴, Ponnusamy and others v. Union
of India and others⁷ and G.
Chandrashekhar v. Karnataka Power
Transmission Corporation Limited⁵
recognise the distinction between acquisition of
ownership and a legislatively created right of
user for public infrastructure.

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11.24. Nevertheless, those authorities do not support any proposition that compensation should be illusory or confined merely to temporary inconvenience. Rather, they reinforce the principle that while ownership may not be acquired, actual prejudice caused to the landowner must be meaningfully addressed.

11.25. This Court, therefore, cannot accept either of the two extreme positions urged before it. It cannot hold that every underground sewer line necessarily results in compulsory acquisition requiring proceedings under the 2013 Act. Equally, it cannot accept a proposition that only temporary inconvenience or surface disturbance is compensable while ignoring continuing prejudice to the owner.

11.26. Section 127A also does not compel a contrary conclusion. The provision applies where the acquisition of land itself or rights equivalent to ownership becomes necessary. It does not override the independent statutory right expressly created under Section 77. To hold otherwise would substantially render Section 77

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ineffective and reduce the phrase "without

acquiring the same" to redundancy.

11.27. The Court is also conscious that a writ Court cannot decide abstractly every conceivable future consequence divorced from factual evidence. Whether a particular alignment through a particular survey number results in minimal impact, moderate impact or severe prejudice is necessarily a factual issue to be considered in the process of determining compensation.

11.28. The issue before this Court is therefore narrower, namely, whether the right of user under Section 77, by its very nature and in every case, amounts to compulsory acquisition requiring proceedings under the 2013 Act. On that legal issue, the answer must be in the negative.

11.29. Accordingly, this court answers Point No. (ii) by holding that the statutory right of user contemplated under Section 77 does not, merely because it creates continuing restrictions or inconvenience to the owner, amount in law to compulsory acquisition of

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property attracting mandatory acquisition proceedings and market-value compensation under the 2013 Act in every case. The right remains a limited statutory right of user distinct from the acquisition of ownership. However, where exercise of such right causes substantial and measurable prejudice affecting utility, development potential, beneficial enjoyment or value of the property, compensation for damage and injurious affection must be assessed realistically and meaningfully with reference to the actual impact suffered by the landowner.

12. Answer to Point No (iii): Whether Sections 39, 76 and 77 of the BWSSB Act, insofar as they permit laying of sewerage infrastructure

through private property without acquisition,
are violative of Articles 14 and 300A of the
Constitution of India?

- 12.1. Sri Sampath A., learned counsel appearing for the petitioners, contended that if Sections 39, 76 and 77 of the BWSSB Act are interpreted as permitting permanent sewerage infrastructure beneath private property without acquisition proceedings and without compensation commensurate with the actual burden imposed,

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such interpretation would render the provisions arbitrary and constitutionally infirm.

- 12.2. According to learned counsel, such interpretation would violate Article 300A of the Constitution because property would effectively stand burdened or appropriated without lawful acquisition and without adequate protection of proprietary rights. It was further submitted that such an interpretation would offend Article 14 because other public utility enactments, including the Indian Telegraph Act and the Petroleum and Minerals Pipelines legislation, provide structured statutory mechanisms recognising and compensating user rights, whereas the respondents seek to deny equivalent protection under the BWSSB Act.

- 12.3. Learned counsel further submitted that the Board cannot rely upon Sections 39, 76 and 77 as a means of bypassing the acquisition mechanism contemplated under Section 127A and that unless Section 77 is construed in a restricted manner, the provision itself would become constitutionally vulnerable.

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12.4. Per contra, Sri K.B. Monesh Kumar, learned counsel appearing for the BWSSB, submitted that the constitutional challenge proceeds upon an erroneous understanding of the statutory framework. According to him, the BWSSB Act itself constitutes the "authority of law" contemplated under Article 300A and expressly creates the power, limits the nature of the right acquired and simultaneously incorporates compensatory safeguards.

12.5. Learned counsel further submitted that the challenge under Article 14 is unsupported by any material establishing hostile discrimination, unreasonable classification or manifest arbitrariness. Reliance was placed upon *Goa Glass Fibre Ltd. v. State of Goa*¹⁰, *Ashwini Kumar Upadhyay v. Union of India*⁸, *Power Grid Corporation of India Limited v. Century Textiles Industries Limited*⁴, *M. Babanna v. State of Karnataka*³ and the affirming judgment of the Hon'ble Division Bench.

12.6. The challenge raised by the petitioners requires examination with constitutional discipline and

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judicial restraint because the Court is dealing with a statutory framework enacted to secure and regulate an essential public utility. Constitutional adjudication in such matters cannot proceed on the basis that another legislative arrangement may appear more beneficial or fairer to affected individuals. Nor can a statutory provision be invalidated merely because another legislative model may provide broader safeguards or more generous compensation.

12.7. As noticed by the respondents through Ashwini Kumar Upadhyay v. Union of

India⁸ and Goa Glass Fibre Ltd. v. State of
Goa¹⁰, legislative choices ordinarily remain
matters of policy and judicial intervention
becomes warranted only where the enactment
suffers from constitutional incompetence,
manifest arbitrariness, hostile discrimination or
clear violation of constitutional guarantees.

- 12.8. In the present case, the petitioners do not
challenge the legislative competence of the
State to enact the BWSSB legislation. Their
challenge is narrower and proceeds on the

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footing that Sections 39, 76 and 77 permit
excessive interference with private property
while providing inadequate protection to
owners. That concern undoubtedly requires
careful examination; however, the existence of
such concern by itself does not establish
constitutional invalidity.

- 12.9. Article 300A: Authority of Law and Nature
of Deprivation

- 12.10. Article 300A protects citizens from deprivation
of property except by authority of law. Though
the right to property no longer enjoys the
status of a fundamental right, it nevertheless
remains a valuable constitutional and legal right
and cannot be interfered with except through a
valid statutory process.

- 12.11. The requirement of "authority of law" under
Article 300A does not merely contemplate the
existence of a statutory provision permitting
State action. It equally requires that the law
itself operate within constitutional boundaries
and that powers conferred under such law are
exercised within the limits contemplated by the
legislature.

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12.12. However, the Court is unable to accept the proposition that Article 300A necessarily requires acquisition proceedings whenever a statutory burden is imposed upon property. The constitutional requirement is not that every interference with property rights must assume the form of compulsory acquisition. What Article 300A insists upon is lawful authority, absence of arbitrariness and adherence to the statutory framework.

12.13. Constitutional adjudication in matters involving property rights also requires recognition of an important distinction between the regulation of property and the extinction of property rights. Not every restriction upon ownership amounts to deprivation of ownership itself. Modern legal systems recognise that ownership rights exist within a structured legal order and may be regulated in aid of larger societal interests.

12.14. Development regulations, zoning restrictions, planning controls, environmental requirements and utility easements frequently impose burdens upon property without extinguishing ownership itself. Such measures may reduce

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the extent of unrestricted use but do not necessarily amount to acquisition or confiscation.

12.15. Therefore, the constitutional inquiry under Article 300A cannot proceed upon the assumption that every burden upon land amounts to deprivation of property. Equally, the Court cannot accept the opposite proposition that mere retention of title automatically concludes the constitutional inquiry.

Constitutional courts are concerned not merely with formal labels but with actual legal consequences.

12.16. A statutory provision cannot escape constitutional scrutiny merely because it describes a measure as a "right of user" if, in practical operation, it produces consequences equivalent to total appropriation. The inquiry, therefore, concerns substance as well as form.

Statutory Scheme and Legislative Design

12.17. In the present case, the authority of law is expressly found within the statute itself. Section 77 authorises the Board to place and

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maintain sewers without the acquisition of ownership and expressly limits the Board to a right of user. Section 77(2) requires the authority to cause as little damage as possible and mandates full compensation for damage caused. Section 39(2) separately recognises compensation for damage and injurious affection, while Section 92 incorporates corresponding safeguards.

12.18. The statutory scheme, therefore, does not contemplate unrestricted occupation or appropriation of land. The legislature has consciously created a limited statutory burden accompanied by obligations and restrictions governing the exercise of power.

12.19. Acquisition of ownership and creation of a right of user are conceptually distinct legal arrangements. Acquisition ordinarily results in the transfer of title or extinguishment of ownership rights, whereas a right of user creates a limited statutory burden while preserving ownership with the landowner.

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Public Purpose and Proportionality

12.20. The Court is conscious that urban sewerage infrastructure is not a matter of mere convenience. It constitutes an essential civic necessity directly linked with public health, sanitation, environmental protection and planned urban development.

12.21. Sewerage systems function as interconnected networks extending across large geographical areas and their design is frequently dictated by engineering requirements, topographical realities, gravity-based flow considerations and planning necessities. If acquisition proceedings were made mandatory every time a sewer line crossed private land, the practical consequence would be fragmentation of infrastructure projects and substantial impairment of the implementation of essential civic works.

12.22. The Court therefore finds force in the respondents' submission that public utility legislation necessarily requires practical operational flexibility. However, operational flexibility cannot be permitted to become legal

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absolutism. The existence of statutory power does not imply unrestricted power.

12.23. Every provision relied upon by the respondents simultaneously imposes corresponding duties and limitations. The duty to minimise injury and provide compensation is not incidental or ornamental. Those obligations constitute substantive limitations upon the power itself.

- 12.24. In constitutional terms, such safeguards perform an important function because they preserve proportionality between the public objective sought to be achieved and the burden imposed upon individual landowners.
- 12.25. Though proportionality is ordinarily discussed in the context of fundamental rights, the underlying principle that State action should maintain a rational relationship between objective and burden remains relevant even while examining action affecting rights protected under Article 300A.

Article 14 Analysis

- 12.26. The challenge under Article 14 also does not succeed on the material placed before the

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Court. The petitioners compare the BWSSB Act with other enactments, such as the Telegraph Act and the Petroleum and Minerals Pipelines legislation and contend that those enactments provide more elaborate compensation structures.

- 12.27. Mere differences in legislative drafting or regulatory design across enactments operating in different sectors do not by themselves establish hostile discrimination. Different legislative frameworks frequently adopt different methods for achieving distinct statutory objectives.
- 12.28. The constitutional inquiry under Article 14 is not whether another enactment adopts a preferable model but whether the impugned legislation itself is irrational, manifestly arbitrary or based upon impermissible classification.
- 12.29. No material has been placed before this Court demonstrating that the statutory framework creates arbitrary distinctions between similarly

situated persons or that the legislative
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classification bears no rational relationship to
the object sought to be achieved.

12.30. The authorities relied upon by the respondents
reinforce this understanding. Power Grid
Corporation of India Limited v. Century
Textiles Industries Limited⁴, M. Babanna v.
State of Karnataka³, the affirming Division
Bench judgment, and the other authorities cited
proceed upon the principle that legislatively
created user rights for public infrastructure may
validly coexist with continuing ownership.

12.31. At the same time, these authorities cannot be
understood as sanctioning unrestricted
interference with private property without
corresponding legal accountability. Their
reasoning proceeds upon the assumption that
compensation remains meaningful and that
exercise of power remains confined within the
legislative framework.

12.32. Therefore, the Court cannot accept either
extreme position advanced before it. It cannot
hold that every statutory user right necessarily
amounts to compulsory acquisition, attracting
proceedings under the 2013 Act. Equally, it

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cannot accept any proposition that
compensation should be reduced to a nominal
payment confined merely to physical excavation
damage.

12.33. The expressions "damage caused" and "injurious affection" occurring in Sections 39 and 77 are of wider legal import and are capable of including measurable consequences affecting value, utility, development potential, marketability and beneficial enjoyment of property.

12.34. Consequently, where a particular alignment demonstrably results in substantial and continuing prejudice affecting ordinary use and enjoyment of property, such consequences must necessarily enter the compensation assessment process.

12.35. If the Board were to exceed statutory limits, occupy more land than reasonably necessary, deny compensation for demonstrable prejudice or otherwise act beyond the legislative framework, the infirmity would arise from the implementation of the statute and not from the validity of the statute itself.

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12.36. Accordingly, this court answers Point No. (iii) by holding that Sections 39, 76 and 77 of the BWSSB Act, insofar as they authorise laying of sewerage infrastructure through private property without acquisition of ownership, are not violative of Articles 14 and 300A of the Constitution of India. The provisions constitute a constitutionally valid statutory framework creating a limited statutory right of user, accompanied by procedural and compensatory safeguards. Their constitutional validity, however, is sustained on the understanding that such safeguards are applied meaningfully and that compensation remains real and responsive to the actual prejudice suffered by affected landowners.

13. Answer to Point No (iv): Whether the compensation contemplated under Sections 39(2), 77(2) and 92(3) of the BWSSB Act is confined only to actual damage or injurious

affection caused to the land, or whether the landowners are entitled to compensation equivalent to the acquisition of the affected land?

- 13.1. Sri Sampath A., learned counsel appearing for the petitioners, submitted that the provisions relating to compensation under the BWSSB Act

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must receive a broad, realistic and purposive construction. According to him, once sewerage pipelines are laid beneath private land and statutory restrictions arise concerning use of the affected land and adjoining areas, the owner suffers a continuing burden extending beyond immediate physical disturbance. Such consequences, according to him, include diminished utility, impairment of development potential and restrictions upon beneficial enjoyment of the property, all of which constitute damage or injurious affection within the meaning of the statute.

- 13.2. Learned counsel further submitted that where the practical effect of such burden is substantial and permanent, fairness and constitutional principle require compensation commensurate with the actual injury suffered by the owner. According to him, compensation cannot be confined merely to temporary excavation damage or physical disturbance during execution of the work because the owner continues to suffer limitations affecting future use and enjoyment of the property.

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13.3. Per contra, Sri K.B. Monesh Kumar, learned counsel appearing for the BWSSB, submitted that the Act does not contemplate compensation equivalent to acquisition value where ownership of land continues to remain with the owner. According to him, Sections 39(2), 77(2) and 92(3) contemplate compensation only for actual damage, injurious affection, temporary disturbance, diminished utility or other real injury resulting from execution and maintenance of the work.

13.4. Reliance was placed upon M. Babanna v. State of Karnataka³, the affirming judgment of the Hon'ble Division Bench in the same matter, Power Grid Corporation of India Limited v. Century Textiles Industries Limited⁴, Ponnusamy and others v. Union of India and others⁷ and Sohams Bicester Village Block B Apartment Owners Association v. Bangalore Water Supply and Sewerage Board⁹, to contend that compensation under such statutory frameworks is compensation for actual injury caused and not compensation arising from transfer of ownership or hypothetical future claims.

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13.5. The dispute concerning compensation lies at the very centre of the present controversy because the legal sustainability of a statutory right of user substantially depends upon the adequacy and meaningfulness of the compensatory safeguards accompanying such right. The respondents are correct in contending that the statutory scheme does not contemplate acquisition-value compensation in every case because ownership in the land is not transferred to the Board. Equally, the petitioners are correct in contending that the statutory expressions employed by the legislature cannot be reduced to nominal or token payment confined merely to immediate physical disturbance.

- 13.6. The Court considers it necessary to emphasise that where legislation permits a public authority to utilise private property without acquisition of ownership, compensation assumes significance beyond that arising in ordinary cases of temporary disturbance. In a conventional acquisition proceeding, the conflict between public need and private ownership is resolved by transfer of title accompanied by market-

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value compensation and associated statutory benefits. The present statutory arrangement adopts a different approach. Ownership remains with the landholder while a continuing statutory burden is imposed for public purposes.

- 13.7. In such a statutory framework, compensation becomes the principal mechanism through which fairness is introduced into the legislative process. The compensatory provisions cannot, therefore, be viewed as incidental or peripheral matters. Rather, they constitute an integral component of the legal and constitutional sustainability of the statutory scheme itself.

- 13.8. This conclusion follows from the structure of the enactment. The statute confers a right of user on one hand and simultaneously imposes obligations concerning minimisation of damage and payment of compensation on the other. The authority to interfere with private property and the obligation to compensate for resulting injury are inseparable parts of the same legislative arrangement.

- 13.9. The starting point of the inquiry must necessarily be the language employed by the

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statute. Section 39(2) provides compensation for "any damage done to, or injurious affection of that land". Section 77(2) requires the Board to "make full compensation for any damage caused by it". Section 92(3) separately contemplates compensation for damage "whether permanent or temporary".

13.10. These expressions are deliberately broad in their formulation and cannot be restricted merely to visible physical injury. The legislature has consciously avoided narrow expressions limited to excavation damage, crop loss or temporary inconvenience and instead adopted wider concepts such as "full compensation", "injurious affection" and "permanent damage".

13.11. The expression "injurious affection" assumes particular significance in this context. In legal understanding, the expression extends beyond direct physical injury and includes diminution in value, impairment of utility, reduction in developmental potential, adverse effect upon future use and other measurable consequences arising from the statutory burden placed upon property.

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13.12. Therefore, the Court is unable to accept an interpretation which confines compensation merely to broken surfaces, removed vegetation, temporary obstruction or damage arising during excavation activity. Such an interpretation would substantially dilute the protection consciously embedded by the legislature itself.

13.13. Property rights are not confined merely to the physical dimensions of land. Ownership carries with it practical utility, developmental possibilities and the ability to derive beneficial enjoyment from property. Consequently, where the exercise of statutory power materially

restricts those incidents of ownership, the resulting prejudice cannot be ignored merely because no visible physical damage has occurred.

13.14. Once an underground sewer alignment is created beneath private property, the consequences upon the owner are not necessarily confined to the precise strip occupied by the infrastructure in engineering terms. The existence of the sewer line may affect the manner in which adjoining portions of

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the property can be utilised. Restrictions arising under Section 76, structural considerations, maintenance requirements, limitations upon future construction and practical constraints upon redevelopment may affect the utility of a larger area.

13.15. In urban properties particularly, such consequences may assume significant importance. Basement construction, structural loading, future redevelopment, commercial utilisation and expansion possibilities may all be affected by the existence of underground utility infrastructure. These consequences are neither speculative nor imaginary and may constitute continuing and measurable prejudice to the owner.

13.16. The Court therefore finds considerable force in the petitioners' submission to the extent that the burden imposed by a statutory right of user cannot be treated as trivial or merely incidental. A continuing burden affecting ordinary use and enjoyment of property must necessarily receive meaningful reflection within the compensation process.

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13.17. However, recognition of these consequences does not justify treating the affected property as though ownership itself had vested in the Board. The Court must remain conscious of the distinction between the existence of a burden and the extinction of ownership.

13.18. Ownership continues with the landholder. Rights of possession, transfer, inheritance and general enjoyment remain intact, albeit subject to the statutory burden. The existence of continuing restrictions may affect the value and utility of ownership, but does not extinguish ownership itself.

13.19. It therefore follows that compensation must reflect the practical burden imposed upon ownership without proceeding upon the legal assumption that ownership itself has been acquired. The measure of compensation should correspond to the degree of impairment suffered and not proceed on the fiction that the title has entirely vested in the authority.

13.20. The authorities relied upon by the respondents reinforce this distinction. M. Babanna v. State of Karnataka³ and the affirming Division

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Bench judgment proceeds on the basis that compensation under Section 77 concerns damage caused and not compensation for the acquisition of title. Likewise, Power Grid Corporation of India Limited v. Century Textiles Industries Limited⁴ recognises the distinction between transfer of ownership and imposition of a statutory burden for public infrastructure.

13.21. However, these authorities cannot be

understood as sanctioning nominal or illusory compensation. Their reasoning necessarily proceeds upon the assumption that compensation remains real, effective and responsive to actual prejudice suffered by the landowner.

13.22. The Court is therefore unable to accept either of the two extreme positions urged before it. It cannot hold that compensation under the BWSSB Act must invariably be equivalent to full market value as in compulsory acquisition proceedings. Equally, it cannot accept any proposition that compensation should be

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confined merely to temporary surface damage or minor physical disturbance.

13.23. The distinction between the nature of the right and the measure of compensation assumes critical significance. A statutory right of user may remain a right of user in legal character while simultaneously imposing consequences sufficiently serious to justify substantial compensation.

13.24. Compensation must therefore bear a rational relationship to the actual burden created. Such burden may include measurable diminution of utility, restrictions upon construction, reduced development potential, impairment of beneficial enjoyment and other continuing consequences arising from the existence and maintenance of sewerage infrastructure.

13.25. The Court is also conscious that exact quantification of continuing prejudice may not always admit precise mathematical determination. The effect upon development potential, utility and future use may vary considerably from property to property and

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frequently cannot be measured with complete precision.

13.26. Courts are therefore occasionally required to adopt a practical and equitable approach capable of translating broad statutory principles into meaningful relief. Such exercise does not substitute judicial policy for legislative policy; rather, it gives practical effect to the legislative requirement of full compensation.

13.27. In the facts of the present case, the Court is of the considered view that the burden imposed extends significantly beyond transient construction damage and creates a continuing restriction upon ordinary use and enjoyment of the affected area. At the same time, ownership itself remains with the petitioners and the statutory framework does not contemplate acquisition of title.

13.28. In these circumstances, compensation quantified at 50% of the market value of the total affected land area represents a fair and reasonable measure in the present facts. Such quantification recognises that ownership rights continue to remain with the petitioners while

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simultaneously acknowledging that the burden imposed is substantially greater than temporary inconvenience or surface disturbance.

13.29. The percentage adopted by this Court is not intended as a rigid principle of universal application but is adopted as an equitable judicial measure on the facts presently available, intended to translate the statutory

requirement of full compensation into a practical and realistic monetary result where exact quantification of continuing prejudice may otherwise prove difficult.

13.30. The relevant date for determination of market value shall be the date on which the pipeline was laid. Where laying has not yet taken place and survey or quantification remains incomplete, the respondents shall complete such exercise within the period stipulated by this order and determine compensation accordingly.

13.31. Accordingly, this court answers Point No. (iv) by holding that compensation under Sections 39(2), 77(2) and 92(3) of the BWSSB Act is not equivalent, as a matter of course, to
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compensation payable upon acquisition of ownership because the statutory framework does not effect transfer of title. However, such compensation is not confined merely to immediate physical damage but extends to actual and measurable injury, whether temporary or permanent, including injurious affection, diminution of utility, impairment of development potential and continuing burdens arising from construction restrictions and maintenance requirements. Upon the facts of the present case, compensation is justly quantified at 50% of the market value of the total affected area, subject to survey and determination in accordance with this order.

14. Answer to Point No (v): Whether the restrictions imposed under Section 76 of the BWSSB Act relating to non-construction and maintenance clearances around sewer lines result in such substantial deprivation of proprietary rights as to necessitate the acquisition of the land?

14.1. Sri Sampath A., learned counsel appearing for

the petitioners, strongly relied upon Section 76 of the BWSSB Act and submitted that the statutory restrictions contained therein substantially alter the nature and extent of the

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burden imposed upon private property. According to him, the minimum clearance requirement of one metre or half the diameter of the sewer, whichever is greater, together with the prohibition against construction over Board sewers, has the practical effect of sterilising the affected area for developmental purposes.

14.2. Learned counsel submitted that the burden created by Section 76 is not confined merely to the exact physical alignment of the underground pipeline. According to him, its effect extends to adjoining portions of land which are required to remain free from construction and available for inspection, repair and maintenance activities. It was therefore contended that the resulting burden is permanent and substantial and, in practical effect, amounts to a deprivation serious enough to require acquisition proceedings.

14.3. Per contra, Sri K.B. Monesh Kumar, learned counsel appearing for the BWSSB, submitted that Section 76 merely regulates activities in the vicinity of Board sewers so as to ensure

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proper functioning, safety and maintenance of the sewerage system. According to him, such restrictions do not transfer ownership or require

acquisition of land but constitute regulatory limitations incidental to the statutory right of user created under Section 77.

14.4. Learned counsel further submitted that ownership and title continue to remain with the landowner and that the land may continue to be utilised subject only to reasonable statutory restrictions, with compensation remaining available for actual injury caused.

14.5. Section 76 assumes particular significance in the present controversy because it effectively translates what initially appears to be a subsurface engineering intervention into a continuing legal restraint operating upon the future use and enjoyment of property. The grievance of the petitioners substantially arises from this consequence because the impact of a sewer line beneath land is not exhausted merely by reference to the dimensions of the pipe itself.

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14.6. The Court finds considerable force in the petitioners' submission to the extent that the legal effect of an underground sewer cannot be measured merely by the physical diameter of the pipeline. Section 76 prohibits construction upon Board sewers and prescribes minimum clearances where structures are proposed in the vicinity of sewer lines and related infrastructure. Therefore, the practical and legal consequences necessarily extend beyond the narrow strip physically occupied by the infrastructure.

14.7. The Court considers it necessary to examine more closely the juridical nature of the restrictions created under Section 76. The provision does not merely regulate conduct during execution of sewerage works; it creates a continuing legal restraint affecting the future use of the burdened property. The restrictions imposed are not temporary conditions

associated only with construction activity but enduring limitations attached to the affected land so long as the infrastructure remains in existence.

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14.8. The significance of this feature cannot be understated. In many urban and semi-urban properties, the practical and economic value of land is closely linked to its developmental potential. The ability to construct, redevelop, commercially utilise or structurally expand land frequently constitutes one of the principal incidents of beneficial ownership.

14.9. Consequently, where legislation restricts the owner's ability to build over or near a substantial portion of the property, the resulting impact may extend beyond the precise physical dimensions of the infrastructure itself. A restriction measured in engineering terms by reference to pipe diameter may, in practical terms, influence the usability and planning potential of a materially larger area.

14.10. Basement construction, structural planning, redevelopment feasibility, commercial utilisation, future expansion and other incidents of beneficial use may all be affected by the existence of underground utility infrastructure and associated restrictions. These consequences are neither speculative nor

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illusory and may, in an appropriate case, create substantial and continuing prejudice.

- 14.11. The Court therefore accepts the petitioners' submission to the limited extent that the burden created by Section 76 is not symbolic or insignificant. It may materially affect present use, future planning and developmental potential and therefore constitutes a continuing burden of practical significance.
- 14.12. However, recognition of the seriousness of the burden does not conclude the legal enquiry. The crucial distinction lies between a restriction regulating the exercise of ownership rights and a measure extinguishing ownership itself.
- 14.13. Constitutional and property jurisprudence have consistently recognised that ownership may continue to exist subject to restrictions, easements, servitudes and regulatory burdens. Development controls, zoning regulations, environmental restrictions and utility easements frequently regulate the manner in which ownership rights are exercised without resulting in transfer or extinction of title.
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- 14.14. The existence of restrictions, even substantial restrictions, therefore does not automatically compel the conclusion that ownership stands acquired in law. If every serious regulatory burden were treated as compulsory acquisition, the distinction between regulation and acquisition, which remains deeply embedded in property jurisprudence, would substantially disappear.
- 14.15. At the same time, the Court cannot accept an interpretation that treats restrictions under Section 76 as mere incidental inconvenience. Such an approach would fail to recognise the true operational effect of the statutory framework and would reduce the compensatory safeguards contained within the legislation to near meaninglessness.
- 14.16. The Court is therefore required to maintain

equilibrium between two competing legal realities. The first is that ownership formally and legally remains with the landholder. The second is that the practical incidents of ownership may nevertheless be materially

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burdened by the continuing restrictions created under Section 76.

14.17. This balance is reflected within the statutory framework itself. Section 77 expressly preserves ownership while confining the Board to a right of user. Section 76 simultaneously recognises that effective maintenance, operational integrity and safety of sewerage infrastructure require restrictions upon adjoining land use. The legislature has therefore consciously created a model under which ownership survives subject to operational burdens necessary for preserving public infrastructure.

14.18. These provisions cannot be read in isolation. The Court cannot permit one provision to nullify the other. If Section 76 were interpreted as automatically requiring acquisition in every case where construction restrictions arise, the distinction consciously drawn by Section 77 between acquisition and user would become substantially ineffective.

14.19. Conversely, if the Court were to minimise the consequences arising from Section 76 and treat

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such restrictions as insignificant, the

interpretation would fail to recognise the real burden imposed upon affected owners and would substantially dilute the statutory protections embedded within the legislation.

14.20. The proper reconciliation, therefore, lies in recognising that Section 76 materially strengthens the landowner's claim to realistic and substantial compensation where the statutory restrictions measurably reduce utility, beneficial enjoyment or developmental potential. The more serious the practical impact arising from such restrictions, the stronger becomes the claim for compensation reflecting diminution of utility and injurious affection.

14.21. The Court also considers it important to emphasise that the compensable burden cannot always be confined to the exact strip physically occupied by the sewer line. In practical terms, the utility impact may extend into adjoining areas rendered functionally restricted because of statutory clearances, maintenance access requirements or structural limitations arising from the existence of the infrastructure.

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14.22. Consequently, where evidence establishes that a broader impact zone has suffered measurable prejudice affecting construction potential or beneficial enjoyment, such consequences may legitimately be considered while determining the compensable area and assessing compensation.

14.23. The Court is equally conscious that public utility legislation of this nature necessarily involves balancing private proprietary rights against larger societal interests concerning sanitation, environmental protection and urban infrastructure. A statutory framework permitting continuity of sewerage alignment across multiple properties serves an important public purpose and cannot be rendered unworkable by insisting upon acquisition in

every case irrespective of the nature of the burden imposed.

- 14.24. Yet public necessity cannot become a basis for disregarding the seriousness of restrictions imposed upon private ownership. The constitutional legitimacy of the statutory arrangement substantially depends upon

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meaningful safeguards ensuring that the burden imposed upon individual landowners remains proportionate and compensable.

- 14.25. It is for this reason that the reasoning adopted while considering compensation under Point No. (iv) assumes direct relevance. If the Court were to recognise the continuing and substantial nature of restrictions under Section 76 while simultaneously awarding only nominal compensation, the statutory balance between public necessity and private rights would collapse in practical operation.

- 14.26. Equally, if every restriction arising under Section 76 were automatically treated as compulsory acquisition, the Court would effectively erase the legislative distinction between ownership and user consciously embodied within the BWSSB Act.

- 14.27. The Court therefore concludes that the legal effect of Section 76 lies not in transforming every sewer alignment into compulsory acquisition but in significantly intensifying the compensable burden imposed upon ownership. The seriousness of the restriction affects the

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degree and measure of compensation payable rather than the juridical character of the right itself.

14.28. Accordingly, this court answers Point No. (v) by holding that the restrictions imposed under Section 76 may, in a given case, cause substantial prejudice to use, enjoyment and developmental potential of property and such consequences must necessarily be taken into account while determining compensation for damage and injurious affection. However, such restrictions do not, by themselves, transform the statutory right of the user into compulsory acquisition or require acquisition of land as a matter of law in every case.

15. Answer to Point No (vi): Whether Section 127A of the BWSSB Act mandates compulsory acquisition of private lands whenever sewerage pipelines or related infrastructure are laid beneath or across such lands?

15.1. Sri Sampath A., learned counsel appearing for the petitioners, submitted that Section 127A reflects a clear legislative intention that whenever private land is required for the purposes of the BWSSB Act, the Board must either purchase such land by agreement or

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seek acquisition through the State. According to him, the very existence of Section 127A demonstrates that permanent public utility infrastructure beneath or across private property cannot ordinarily be sustained without acquisition proceedings or consensual transfer of rights.

15.2. Learned counsel argued that once sewerage infrastructure creates continuing rights of access, maintenance obligations and restrictions affecting development and

enjoyment of property, the burden ceases to remain a mere right of user and enters the field of acquisition. According to him, permitting the Board to avoid acquisition in such circumstances would substantially dilute the protection intended to be afforded to private property.

- 15.3. Per contra, Sri K.B. Monesh Kumar, learned counsel appearing for the BWSSB, submitted that Section 127A applies only where the Board requires the acquisition of land itself or rights substantially equivalent to ownership. According to him, the provision does not
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override Sections 39 and 77, which independently authorise laying of mains and sewers through a limited statutory right of user without acquisition.

- 15.4. Learned counsel submitted that the interpretation advanced by the petitioners would render Sections 39 and 77 substantially redundant because every sewer alignment across private property would automatically require acquisition proceedings, thereby defeating the distinction consciously maintained by the legislature between acquisition and user.

- 15.5. The Court considers it necessary at the outset to examine the place occupied by Section 127A within the overall statutory framework of the BWSSB Act. The provision authorises the Board, subject to previous approval of the State Government and in accordance with the provisions of the Act, to purchase land by agreement or seek acquisition of immovable property through the State for purposes of the Act.

- 15.6. The provision therefore undoubtedly recognises that in appropriate cases the Board may require

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ownership of land or a more complete proprietary interest for execution of its statutory obligations. The very existence of Section 127A demonstrates that the legislature contemplated situations where acquisition may become necessary.

15.7. However, the issue before the Court is not whether the power of acquisition is available under the Act. The real question is whether Section 127A converts acquisition into a mandatory prerequisite whenever sewerage infrastructure traverses private property.

15.8. The Court is unable to accept such an interpretation.

15.9. The starting point must necessarily be the language employed by the statute itself. Section 127A authorises the acquisition where land is required for purposes of the Act. The provision does not state that acquisition shall be mandatory whenever infrastructure passes across private land. Equally, it contains no language expressly overriding Sections 39 or 77.

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15.10. In contrast, Section 77 expressly authorises the Board to place and maintain sewers over, under, along or across private property "without acquiring the same" and specifically limits the Board to acquisition of no right other than a right of user.

15.11. The significance of this language cannot be overlooked. Had the legislature intended

acquisition to be compulsory in every case where a sewer line crossed private property, Section 77 would necessarily have been framed in substantially different terms. Instead, the legislature consciously enacted both an acquisition mechanism and a right-of-user mechanism within the same enactment.

15.12. The existence of both provisions within the same statutory framework indicates that the legislature contemplated more than one legally permissible route depending upon the nature and extent of the rights required.

15.13. The Court must therefore adopt an interpretation that gives meaningful operation to both provisions simultaneously rather than

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permit one provision to substantially nullify the other.

15.14. Harmonious construction is not merely a technical principle of interpretation but a necessary consequence of legislative coherence. Where two provisions of the same enactment are capable of operating together, the Court must avoid an interpretation that renders one of them ineffective, redundant or otiose.

15.15. Acceptance of the petitioners' submission would effectively transform Section 127A from an enabling provision into a mandatory provision and would reduce Section 77 into a provision of little practical consequence. Such an interpretation would be inconsistent with established principles governing the interpretation of statutes.

15.16. Equally, however, the Court is unable to accept an interpretation reducing Section 127A to insignificance. The respondents' interpretation cannot be understood as meaning that the Board may invariably resort to a right of user

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irrespective of the degree of burden imposed upon property.

15.17. The Court considers it necessary to examine the issue from a broader perspective. The petitioners' argument proceeds upon the assumption that whenever private land becomes affected by a public project, acquisition must necessarily follow. However, such a proposition neither emerges from the statutory text nor can it be accepted as a universal principle of law.

15.18. Infrastructure legislation and property legislation frequently operate through different legal mechanisms depending upon the nature of the interest required by the authority. In some cases, public purposes can be achieved only through the transfer of ownership or possession. In other situations, the objective may be accomplished through a more limited legal entitlement such as a right of passage, easement, servitude or statutory right of user.

15.19. The distinction between these legal mechanisms is not merely a matter of legislative drafting. It reflects recognition of an

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important practical reality that not every public purpose requires complete acquisition of ownership and not every burden imposed upon land extinguishes proprietary rights.

15.20. Section 127A itself reflects this legislative

understanding. The provision does not declare that the Board shall acquire land whenever land becomes affected for purposes of the Act. Rather, it merely creates a legal mechanism through which acquisition may be undertaken where circumstances require such acquisition.

15.21. The significance of the language employed assumes importance. The provision is framed in enabling terms. It authorises the Board to purchase land or seek acquisition through the State Government. It does not compel the Board to resort to acquisition in every situation, irrespective of the nature of the project or the degree of interference involved.

15.22. Had the legislature intended acquisition to be mandatory in every case where infrastructure traversed private property, the enactment could easily have employed explicit language to that effect. Instead, the statute consciously

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preserves independent provisions enabling execution of public works through a right-of-user model.

15.23. Courts cannot convert an enabling provision into a mandatory requirement merely because another regulatory model may appear more advantageous to affected individuals.

15.24. The Court is also unable to overlook the practical consequences that would follow from the interpretation suggested by the petitioners. Sewerage systems function as integrated networks extending across multiple properties and are frequently designed according to engineering requirements, topographical realities, gravity-flow considerations and public health requirements.

15.25. If acquisition proceedings were made mandatory every time a pipeline crossed private land, even for limited subsurface

alignments involving minimal interference, the practical result would be a multiplication of acquisition proceedings across numerous parcels and a substantial impediment to the execution of essential infrastructure.

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15.26. Such an interpretation would not merely create administrative difficulty. It may substantially impair the statutory object itself and frustrate implementation of public infrastructure intended to serve wider societal interests concerning sanitation, public health and urban planning.

15.27. However, administrative convenience cannot become the sole determinant of legal interpretation. Public necessity cannot justify unrestricted intrusion upon private rights. The fact that an acquisition may involve complexity does not permit the authority to rely upon a right of user in circumstances where the practical burden imposed substantially exceeds its legitimate boundaries.

15.28. It is in this context that Section 127A assumes continuing significance. The provision performs an important limiting function within the statutory framework because it recognises that circumstances may arise where a limited right of user becomes inadequate and acquisition of a fuller proprietary interest becomes necessary.

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15.29. The Court therefore considers Section 127A not merely as an acquisition provision but also as an interpretative indicator reflecting legislative

recognition of graded forms of interference with private property.

15.30. The statutory framework does not proceed upon a binary assumption that either there must always be an acquisition or there must never be an acquisition. Rather, the structure of the Act indicates a spectrum of legally permissible interference depending upon the nature and extent of the rights required.

15.31. At one end of that spectrum lies temporary entry and limited access for specified purposes. At another lies a statutory right of user for execution and maintenance of infrastructure. At the far end lies acquisition, where ownership or a substantially greater proprietary interest becomes necessary.

15.32. The Court is of the considered view that this graded structure provides the most coherent understanding of the Act because it gives meaningful effect to all relevant provisions

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without reducing any one of them to redundancy.

15.33. The petitioners are therefore correct to the limited extent that the Board cannot mechanically rely upon Section 77 in every situation, irrespective of the actual burden imposed. The nature, extent and practical consequences of the burden remain relevant considerations.

15.34. Equally, the respondents are correct in contending that the mere existence of Section 127A does not convert every sewer alignment into a case requiring compulsory acquisition.

15.35. The proper enquiry, therefore, is not whether a project affects private land, because every sewer alignment crossing private property inevitably affects land in some manner. The

relevant enquiry is whether the nature and extent of the rights required remain capable of being accommodated within a limited statutory right of user.

- 15.36. Where the practical effect of the project substantially exceeds the ordinary incidents of

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a right of user and approaches a level of interference inconsistent with meaningful ownership, the authority may be required to resort to acquisition under Section 127A.

- 15.37. Conversely, where the statutory purpose can reasonably be achieved through a limited right of user accompanied by meaningful compensation and procedural safeguards, Sections 39 and 77 remain fully operative.

- 15.38. The Court therefore concludes that Section 127A strengthens rather than weakens the conclusions already reached while considering the earlier points. The Act recognises different degrees of interference with private property and provides different legal mechanisms corresponding to those differing degrees of interference.

- 15.39. Accordingly, this court answers Point No. (vi) by holding that Section 127A of the BWSSB Act is an enabling provision authorising acquisition where land itself or a more substantial proprietary interest is required for purposes of the Act. It does not mandate compulsory acquisition whenever sewerage pipelines or

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related infrastructure are laid beneath or across private land. Sections 39 and 77 continue to operate independently where the statute contemplates execution through a limited right of user. However, where the burden imposed substantially exceeds the nature of a limited user right and materially impairs meaningful ownership, recourse to acquisition under Section 127A may become necessary in an appropriate case.

16. Answer to Point No (vii): Whether the actions of the respondents in the facts of W.P. No.8296/2015 and W.P. No.7754/2018 are arbitrary, illegal or unconstitutional and violative of the petitioners' rights under Article 300A of the Constitution of India?

- 16.1. In W.P. No.8296/2015, Sri Sampath A., learned counsel appearing for the petitioner, submitted that the respondents attempted to lay an eight-foot sewage pipeline through the petitioner's land by treating an eroded portion adjoining a Government drain as though it formed part of the drain area itself, without undertaking any survey, demarcation, acquisition proceedings or lawful determination of the affected land. According to him, despite the petitioner's

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assertion of title and specific grievance regarding soil erosion affecting approximately thirteen guntas of land, the respondents proceeded on assumptions unsupported by any formal exercise identifying the actual extent of land affected.

- 16.2. In W.P. No.7754/2018, learned counsel appearing for the petitioners submitted that the BWSSB unlawfully entered the petitioners' property, laid a five-foot pipeline and proposed chambers without following the statutory framework and without consent or compensation. It was argued that while the

respondents sought to trace their authority to Sections 76 and 77 of the BWSSB Act, such provisions could not legitimise arbitrary exercise of power or dispense with procedural fairness.

- 16.3. The petitioners, therefore, contended that the respondents proceeded as though private property could be utilised as of right without first lawfully identifying the affected area and without undertaking any meaningful exercise for the determination of compensation.

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According to them, such action amounted to an arbitrary exercise of power violative of Article 300A of the Constitution.

- 16.4. Per contra, Sri K.B. Monesh Kumar, learned counsel appearing for the BWSSB, submitted that the actions complained of are traceable to statutory authority under Sections 39, 77 and 92 of the BWSSB Act and therefore cannot be characterised as unconstitutional merely because acquisition proceedings were not initiated.

- 16.5. Learned counsel argued that the statutory obligation of the Board is to minimise damage and compensate actual injury and not necessarily to acquire land. Reliance was placed upon M. Babanna v. State of Karnataka³, the affirming Division Bench judgment and the authorities already discussed to contend that public interest in sewerage and sanitation cannot be obstructed merely because the project traverses private land.

- 16.6. The issue arising under this Point requires a distinction of fundamental significance, namely the distinction between the existence of

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statutory power and the legality of the manner in which such power is exercised. The validity of a statutory provision does not automatically validate every individual action purportedly taken under it. Equally, the existence of power does not immunise its exercise from judicial scrutiny.

16.7. The Court has already concluded while answering the earlier points that the BWSSB Act does confer authority upon the Board to place and maintain sewerage infrastructure through private property without compulsory acquisition of ownership, subject to the limitations, safeguards and compensatory obligations embodied in the statute.

16.8. Therefore, the actions complained of cannot be termed unconstitutional merely because acquisition proceedings were not initiated. The challenge raised by the petitioners cannot succeed at the level of statutory competence because the source of power itself is traceable to express provisions of the enactment.

16.9. However, the conclusion that the Board possesses statutory authority does not

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conclude the inquiry. The more important question concerns whether such authority was exercised in accordance with the conditions attached by law and consistent with procedural fairness.

16.10. In public law, legality extends beyond the existence of authority and equally concerns the manner of its exercise. A statutory authority cannot rely upon the existence of power while

disregarding the limitations accompanying that power. Exercise of power contrary to statutory safeguards may become arbitrary even where the source of authority itself remains valid.

16.11. The Court considers it necessary to examine more closely the legal consequences arising where statutory authority is exercised without adequate factual determination. A statutory power does not operate in a factual vacuum. Every exercise of power necessarily presupposes the existence of objective facts to which the statutory provision is intended to apply.

16.12. Therefore, the authority of law contemplated under Article 300A is not satisfied merely

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because the statute exists. The statutory power must also be exercised upon ascertainable facts and within the limits contemplated by the enactment.

16.13. Where exercise of power depends upon identification of the land affected, the extent of the burden imposed or the precise alignment proposed, those matters cannot be left to assumption or administrative approximation.

16.14. Survey and demarcation, therefore, assume significance not merely as technical exercises intended for administrative convenience. They perform a more fundamental legal function because they establish the factual basis upon which the statutory right of user itself comes into existence.

16.15. Unless the land affected is accurately identified, several legal consequences become uncertain. The authority itself may remain uncertain regarding the precise area over which it claims user rights. Equally, the landowner may remain uncertain regarding the extent of restrictions imposed upon the use and enjoyment of

property.

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16.16. Uncertainty at this stage inevitably affects the determination of compensation because compensation cannot meaningfully be assessed in the abstract. Quantification of damage, injurious affection, diminution of utility and continuing prejudice necessarily requires identification of the actual extent and nature of the burden imposed.

16.17. It is in this context that the grievance raised in W.P. No.8296/2015 assumes particular significance. The petitioner does not merely complain regarding the existence of a sewerage project. The complaint concerns the factual premise upon which the project alignment itself is sought to be justified.

16.18. If the respondents proceed on the assumption that an eroded portion adjoining an existing drain forms part of public land or drain land without first undertaking a lawful exercise of survey and identification, the resulting action may suffer from a defect going to the root of the decision-making process itself.

16.19. The Court cannot ignore the practical implications of such a course. Land boundaries,

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particularly where erosion, drains, water channels and adjoining public areas are involved, may become matters of considerable factual complexity. Minor assumptions at the stage of identification may ultimately produce

substantial consequences affecting ownership rights and compensation entitlements.

16.20. Therefore, where the identity, extent or ownership of the land traversed is disputed, procedural fairness requires that proper survey and demarcation precede implementation of the statutory power.

16.21. Procedural fairness in this context does not arise merely from abstract notions of natural justice. It emerges directly from the statutory framework itself. The scheme of the Act repeatedly links the exercise of power with corresponding obligations concerning minimisation of injury and payment of compensation.

16.22. Those obligations necessarily presuppose prior identification of the property affected and assessment of the burden created. It would be internally inconsistent to hold on one hand that

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compensation must reflect actual injury and on the other permit the authority to proceed without identifying the area affected.

16.23. Similar considerations arise in relation to W.P. No.7754/2018. The petitioners complain that pipelines were already laid and chambers proposed or constructed without consent and without compensation.

16.24. To the extent the challenge is founded solely upon the absence of consent, the respondents are supported by the statutory provisions and authorities already discussed because consent does not constitute an indispensable condition precedent for the exercise of the statutory right of user under Section 77.

16.25. However, the absence of consent cannot be conflated with the absence of accountability. The statutory power under Section 77 does not

16.26. Even where prior consent is unnecessary, exercise of power remains subject to procedural discipline and legal accountability. The Court is unable to accept an interpretation under which

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the authority may lawfully enter upon private property, execute permanent infrastructure and indefinitely postpone questions concerning compensation or identification of affected areas.

16.27. Such an interpretation would substantially weaken the balance consciously embedded by the legislature between public necessity and private rights and may permit the right of user to assume characteristics approaching unrestricted occupation.

16.28. The Court is equally conscious of the limits of writ jurisdiction in such matters. Judicial review does not ordinarily extend to the substitution of technical decisions concerning engineering feasibility, route alignment or infrastructure design undertaken by specialised authorities. Nor can the Court prohibit public utility projects merely because private lands are affected. Sewerage and sanitation projects involve broader public interests and frequently require technical evaluation beyond the institutional competence of a writ Court.

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16.29. However, judicial restraint cannot be confused with judicial abdication. Courts remain under a

constitutional obligation to ensure that the exercise of statutory power remains anchored to legality, factual certainty and procedural fairness.

16.30. The present case illustrates this distinction. The Court does not sit in appeal over engineering decisions nor does it redesign the project itself. The Court intervenes only to ensure that implementation proceeds upon verified facts and with meaningful compliance with statutory safeguards. Such intervention does not obstruct public projects; rather, it strengthens their legal legitimacy by ensuring that the burden of public infrastructure is distributed through lawful procedures rather than unilateral assumptions.

16.31. The Court therefore concludes that the defect alleged by the petitioners, insofar as it concerns survey, demarcation and compensation assessment, relates not to the absence of statutory authority but to the manner of implementation of that authority.

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16.32. Accordingly, this court answers Point No. (vii) by holding that the respondents' actions cannot be held unconstitutional merely because acquisition proceedings were not undertaken, since the statutory framework authorises laying of sewerage infrastructure through a right-of-user model. However, the actions become vulnerable to judicial correction to the extent the respondents failed to undertake proper survey and demarcation where factual disputes regarding the affected area arise, or failed to assess and determine compensation for actual damage and injurious affection in accordance with the Act. The challenge under Article 300A, therefore, fails at the level of statutory power but succeeds to the limited extent of requiring lawful and procedurally fair implementation of that power.

17. Answer to Point No (viii): Whether the

petitioners are entitled to the reliefs sought for
in the present writ petitions?

- 17.1. The petitioners sought multiple and distinct
reliefs in the present proceedings. In W.P.
No.8296/2015, the petitioner sought removal of
the sewerage pipeline, prior survey and
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demarcation of the land, compensation for
alleged injury caused and construction of a
retaining wall. In W.P. No.7754/2018, the
petitioners sought a declaration that Section 77
of the BWSSB Act is unconstitutional to the
extent challenged and further sought
compensation under the provisions of the 2013
Act.

- 17.2. The foundation of the petitioners' case was that
the respondents could not lawfully burden
private property through sewerage
infrastructure without first acquiring the land or
obtaining consensual transfer of rights and that
the Court should grant complete protection
against such interference.

- 17.3. Per contra, the respondents opposed the
substantive reliefs sought and contended that
the writ petitions are liable to be dismissed
because the Board's actions are traceable to
statutory authority. According to them, the
petitioners, at the highest, may only be entitled
to compensation for actual damage or injurious
affection if established in accordance with law.

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- 17.4. This Court has already held while answering the

preceding points that the BWSSB Act authorises laying and maintenance of sewerage infrastructure beneath or across private property through a statutory right-of-user framework without compulsory acquisition of ownership in every case. The Court has also held that Sections 39, 76 and 77 do not suffer from constitutional infirmity and that acquisition under the 2013 Act is not an invariable prerequisite whenever sewerage lines traverse private land.

17.5. Those conclusions necessarily govern the nature and extent of relief that may now be granted. Once the Court has upheld the statutory power and rejected the proposition that acquisition is mandatory in every case, relief cannot be granted in a manner that indirectly defeats those conclusions.

17.6. Consequently, the petitioners are not entitled to a declaration that Section 77 is unconstitutional, nor are they entitled to a direction that acquisition proceedings under the 2013 Act become mandatory whenever

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sewerage pipelines are laid beneath private property. Equally, the petitioners cannot seek removal of pipelines already laid or proposed to be laid merely upon the general premise that private property cannot be burdened without acquisition. However, rejection of the broader constitutional and acquisition-based challenges does not automatically result in dismissal of the petitions in their entirety.

17.7. The Court has already concluded that while the statutory power itself is valid, exercise of that power remains subject to procedural safeguards, factual determination and meaningful compensation.

17.8. The distinction between rejection of the principal legal challenge and entitlement to

consequential relief assumes significance in the present case. A litigant may fail in establishing invalidity of the statute while nevertheless succeeding in demonstrating that implementation of statutory power requires corrective intervention.

- 17.9. The Court considers it necessary to examine more closely the nature of relief that ought to

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follow from the conclusions already reached. Grant of relief in writ jurisdiction is not a mechanical consequence of identifying some legal infirmity, nor does rejection of a principal challenge necessarily require dismissal of all consequential claims.

- 17.10. Public law adjudication frequently requires a calibrated approach because disputes may involve several distinct layers of challenge, including constitutional validity of legislation, legality of administrative action and consequential injury arising from implementation.

- 17.11. The present proceedings illustrate precisely such a situation. The petitioners have challenged both the legal framework and the manner of implementation. While the broader challenge to the statutory framework has failed, the Court has simultaneously recognised deficiencies concerning survey, identification of affected areas and compensation determination.

- 17.12. The Court therefore considers it necessary to mould relief in a manner that preserves

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coherence between legal principle and practical outcome.

17.13. The present dispute, in essence, concerns the manner in which the burden of public infrastructure is distributed. Public benefit derived from infrastructure projects cannot be achieved through unilateral transfer of disproportionate burdens upon a limited class of affected landowners without adherence to statutory safeguards. The proper judicial approach lies in ensuring that public infrastructure proceeds while simultaneously requiring compliance with the conditions which the legislature itself has attached to exercise of power.

17.14. In W.P. No.8296/2015, the grievance regarding the disputed portion adjoining the drain assumes significance because the factual identification of the affected area forms the foundation upon which all subsequent rights and obligations rest. Without such identification, the extent of the burden imposed remains uncertain and compensation determination necessarily becomes speculative.

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17.15. Therefore, before further work is undertaken in the disputed portion, the respondents shall conduct a proper survey and demarcation exercise after issuing notice to the petitioner so that the exact alignment, ownership position and precise land affected are formally identified. Such direction does not obstruct the execution of the project itself. Rather, it ensures that implementation proceeds upon factual certainty and lawful identification of the affected area.

17.16. The petitioner's claim concerning erosion and retaining measures cannot be granted in the

broad form presently sought because the material placed before the Court does not permit definitive adjudication regarding causation and quantification.

17.17. Nevertheless, such a grievance cannot be disregarded altogether. The respondents shall examine and determine any claim concerning actual damage attributable to execution of sewerage work, including claims relating to erosion, soil displacement or consequential injury, in accordance with the statutory

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framework and findings emerging from the survey exercise.

17.18. In W.P. No.7754/2018, the petitioners are not entitled to compensation under the 2013 Act as though ownership of land stood compulsorily acquired because the Court has already rejected that legal premise.

17.19. However, they remain entitled to the determination of compensation for actual damage and injurious affection under Sections 39(2), 77(2) and 92(3) of the BWSSB Act.

17.20. The Court has already held that compensation under the statutory framework is not confined merely to immediate physical injury and may extend to diminution of utility, impairment of developmental potential, restrictions upon beneficial enjoyment and other continuing consequences where established.

17.21. Therefore, the respondents shall undertake an exercise to identify the direct alignment area together with the restricted or affected area arising from statutory limitations and determine compensation accordingly.

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17.22. The Court also considers it necessary to address the question of interest. Compensation awarded after a substantial delay, without accounting for the period during which the landowner has already suffered the burden, may not fully restore the position intended by the statutory framework.

17.23. The rationale for awarding interest does not arise by way of penalty upon the authority but by way of restitution because the owner suffers continuing deprivation of the monetary equivalent of the injury already sustained.

17.24. Accordingly, where pipelines have already been laid and compensation remains unpaid, the respondents shall pay compensation together with interest from the date of laying of the pipeline until payment.

17.25. In cases where compensation requires fresh determination pursuant to this judgment, the respondents shall complete the exercise within the period stipulated in the operative portion of this order and failure thereafter shall attract interest from the date of default.

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17.26. Such distinction appropriately aligns relief with the stage at which compensable injury arises and maintains consistency between legal principle and practical implementation.

17.27. The Court therefore concludes that the appropriate remedy is neither complete prohibition of the project nor complete rejection of the petitions. The remedy must preserve the public utility project while simultaneously ensuring lawful implementation, factual

17.28. Accordingly, the writ petitions deserve to be partly allowed to the limited extent of ensuring due survey and demarcation where necessary, identification of affected areas, assessment and determination of compensation for actual damage and injurious affection and payment of compensation in accordance with the statutory scheme and findings recorded in this judgment.

17.29. The broader challenge to the constitutional validity of the statutory provisions and the insistence upon compulsory acquisition as the exclusive lawful route stand rejected.

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18. Answer to Point No (ix): What Order?

18.1. In view of the answers to Point No. (i) to Point

No.(ix), this Court passes the following:

ORDER

i. W.P. No.8296/2015 and W.P. No.7754/2018 are partly allowed in the following terms.

ii. The challenge to the constitutional validity of Section 77 of the BWSSB Act, and to Sections 39, 76 and 77 on the grounds urged in these petitions, is rejected.

iii. It is declared that the Bangalore Water Supply and Sewerage Board is empowered under Sections 39, 76, 77 and 92 of the BWSSB Act to lay and maintain sewerage pipelines over, under, along or across private property without acquiring ownership rights over such land, but only as a limited statutory right of user and subject to the obligations contained in the Act.

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v. In W.P. No.8296/2015, before undertaking any further work in the disputed portion adjoining the drain, the respondents shall conduct a proper survey and demarcation of the petitioner's land with due notice to the petitioner and shall thereafter proceed strictly in accordance with such demarcation and the BWSSB Act.

vi. In both writ petitions, the competent authority of the BWSSB shall assess, determine and pay compensation, if any, payable to the respective petitioners for actual damage, whether permanent or temporary, and for injurious affection caused to the land by reason of laying,

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vii. Such exercise shall be completed by a reasoned order, after affording an opportunity to the concerned petitioners to place their materials on the nature and extent of damage or injurious affection, within an outer limit of four months from the date of receipt of a certified copy of this order.

viii. The prayer for removal of sewerage pipelines, the prayer for declaration that Section 77 is unconstitutional, and the prayer for acquisition-based compensation under the 2013 Act stand rejected.

ix. All pending interlocutory applications, if any, stand disposed of in the above terms.

Sd/-

(SURAJ GOVINDARAJ) JUDGE LN List No.: 1 Sl No.: 96